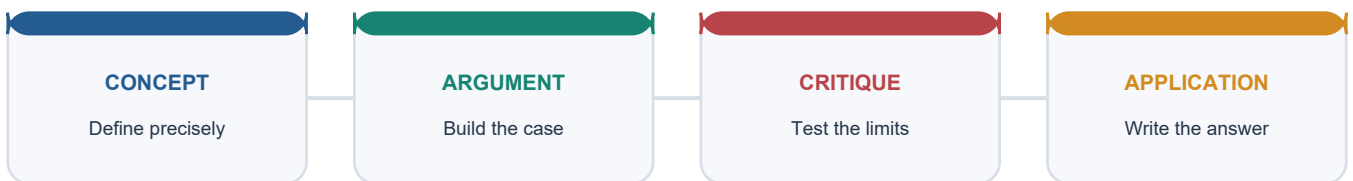


COMPLETE LEARNING SESSION

NCRWC and Working of the Constitution - Learner-v2 Refreshed

Visual-first constitutional review, working diagnosis and reform routes

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Learning Session Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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NCRWC and Working of the Constitution - Complete Uncompressed Learning Session

Complete Core-first learning session + verified practice + optional Advanced + register notes

Legal/current control date: 9 September 2026 (Asia/Kolkata)

Evidence discipline: NCRWC recommendations, constitutional text, later law, judgments and analytical inference are separately labelled. Chronology or similarity is never treated as proof that a later reform implemented the Commission.

DEEP-REVIEW LEARNING CONTRACT

Control	Binding rule for this package
Syllabus boundary	Complete Polity Basic/Core is answer-complete before optional Advanced depth.
Text hierarchy	Constitution/Act/rule/notification -> binding judgment -> authoritative institution -> Constituent Assembly material -> standard textbook.
Legal precision	State exact Article, Part, Schedule, amendment, case, date, institution, procedure, exception and current operative status.
Doctrine method	Text -> institutional mechanism -> controlling case -> exception/limit -> present legal status.
Chronology	Enactment, commencement, amendment, judgment and implementation dates remain separate.
Boundary method	Topic ownership and cross-owner bridges are explicit; adjacent PYQs never become fabricated direct routes.
Practice contract	Every solved item has demand decoding, examiner-grade model, timed compression plan, marks rationale and answer-specific improvement.

Canonical Basic/Core owner:

upsc-ai-kit\knowledge\Polity\basic\NCRWC-and-Working-of-the-Constitution.md **Canonical topic**

owner: upsc-ai-kit\knowledge\Polity\basic\NCRWC-and-Working-of-the-Constitution.md **Optional**

Advanced owner:

upsc-ai-kit\knowledge\Polity\advanced\52_NCRWC-and-Working-of-the-Constitution.md **Official**

syllabus mapping: upsc-ai-kit\knowledge\Polity\OFFICIAL-UPSC-SYLLABUS-MAPPING.md

EVIDENCE, PYQ AND CURRENT-STATUS CONTROL

- **Four independent ledgers:** literal syllabus/index, indispensable

prerequisites, standard textbook taxonomy and complete routed 2018-2026 PYQ demands were built before repair.

- **Hostile search:** missing Articles, Parts, Schedules, amendments, cases,

institutional mechanisms, exceptions, chronology, source status and cross-owner boundaries are hard failures.

- **Answer rule:** claim -> exact constitutional/statutory/case evidence ->

institutional analysis -> exception or qualification.

- **Current-status note, rechecked 2026-09-09:** The official 2002 NCRWC report remains advisory.

Every claim of adoption must be proved through a separate amendment, statute, rule, judgment or executive instrument. The Department of Legal Affairs report archive, Inter-State Council Secretariat portal, PIB release of 2 April 2002 and India Code/official constitutional text were used as the current-status control.

Authoritative live sources:

- <https://www.legalaffairs.gov.in/documents/reports/national-commission-to-review-the-working-of-the-constitution-ncrwc-IjM2AzMtQWa?archives=true>
- <https://interstatecouncil.gov.in/ncrwc/>

- <https://archive.pib.gov.in/archive/releases98/lyr2002/rsep2002/12092002/r120920024.html>
- <https://legislative.gov.in/document/constitution-of-india-in-english>
- <https://www.indiacode.nic.in/>

BASIC LEARNING SESSION

SESSION 1 - IDENTITY AND MANDATE

VISUAL-FIRST MAP

REVIEW OF WORKING

```

|
+--> executive resolution, 22-02-2000
+--> advisory eleven-member commission
+--> parliamentary democracy + basic structure boundary
'--> report, 31-03-2002 -> recommendation, not law

```

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The NCRWC was a temporary advisory commission created to review constitutional performance.

Technical definition: Its executive origin, basic-structure boundary and non-binding report distinguish review from constituent power.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The NCRWC was a temporary advisory commission created to review constitutional performance. Its executive origin, basic-structure boundary and non-binding report distinguish review from constituent power.

MUST-WRITE KEYWORDS

- constitutional review
- advisory commission
- Government resolution
- Venkatachaliah
- basic structure
- parliamentary democracy

How to use them: Frame the answer through constitutional review; define advisory commission, connect Government resolution with Venkatachaliah to explain the mechanism, and use basic structure for the decisive comparison or qualification.

Attribute	Position
Creation	Set up by a Government of India resolution dated 22 February 2000
Legal status	Executive, temporary and advisory; neither constitutional nor statutory
Chair	M.N. Venkatachaliah, former Chief Justice of India
Composition	11-member commission
Report	Adopted and signed on 11 March 2002 ; presented to the Prime Minister on 31 March 2002
Task	Review how the Constitution had worked over fifty years and recommend changes for effective governance and socio-economic development
Express limit	Work within parliamentary democracy and without disturbing the basic structure/basic features

Master distinction: The NCRWC reviewed the **working** of the Constitution; it was not a constituent assembly and did not claim power to rewrite the Constitution.

Constitutional activity	Source of authority	What it can do	What it cannot be confused with
Review	Executive resolution, commission or legislative study	Diagnose performance and recommend changes	Does not itself alter law
Ordinary amendment	Article 368 procedure	Amend constitutional text subject to procedure and basic structure	Is not original constituent power
Amendment requiring State ratification	Proviso to Article 368(2)	Alter specified federal provisions after ratification by at least half the States	Not every amendment needs State ratification
Replacement/new Constitution	A fresh constituent claim and political mandate	Seeks a new constitutional settlement	Was outside the NCRWC's mandate

Non-negotiable conclusion: Basic structure does not freeze the Constitution. It prevents destruction of its identity while leaving wide room for amendment, legislation, interpretation, conventions and administrative reform.

1.1 Initial composition

FACT: The eleven-member Commission comprised Chairperson **Justice M.N. Venkatachaliah** and **Justice B.P. Jeevan Reddy, Justice R.S. Sarkaria, Justice Kottapalli Punneyya, P.A. Sangma, Soli J. Sorabjee, K. Parasaran, Dr Subhash C. Kashyap, C.R. Irani, Dr Abid Hussain and Sumitra G. Kulkarni**. The signed report records that **P.A. Sangma had resigned**. Dr Raghbir Singh served the Commission as secretary; he was not a twelfth Commission member.

Composition trap: "Eleven members" includes the Chairperson. Do not add the secretary or advisory-panel participants to the Commission's membership.

Write the paragraph: *Claim* - the NCRWC reviewed constitutional performance without exercising constituent power. *Evidence* - the 22 February 2000 resolution, Justice M.N. Venkatachaliah's chairmanship and the express parliamentary-democracy/basic-structure boundary. *Analysis* - executive origin made the report advisory. *Qualification* - later law must be proved independently.

CLOSING RECALL FLOW - IDENTITY AND MANDATE

START / CONCEPT: IDENTITY AND MANDATE

|
v

EXACT TERMS: constitutional review • advisory commission • Government resolution • Venkatachaliah • basic structure • parliamentary democracy

|
v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

|
v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

|
v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

|
v

ANSWER-GRABBING FORMULATION: The NCRWC was a temporary advisory commission created to review constitutional performance. Its executive origin, basic-structure boundary and non-binding report distinguish review from constituent power.

SESSION 2 - TERMS OF REFERENCE AND STUDY FIELDS

VISUAL-FIRST MAP

FIFTY YEARS' EXPERIENCE

- > institutions + elections + rights + federalism + administration
- > effective government + socio-economic development
- > 249 proposals through amendment / legislation / executive action

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The terms of reference defined both a broad performance audit and a firm constitutional boundary.

Technical definition: A review spanning institutions and socio-economic development remained subject to parliamentary democracy and basic structure.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The terms of reference defined both a broad performance audit and a firm constitutional boundary. A review spanning institutions and socio-economic development remained subject to parliamentary democracy and basic structure.

MUST-WRITE KEYWORDS

- **terms of reference**
- **performance audit**
- **governance**
- **socio-economic development**
- **parliamentary democracy**
- **basic structure**

How to use them: Frame the answer through terms of reference; define performance audit, connect governance with socio-economic development to explain the mechanism, and use parliamentary democracy for the decisive comparison or qualification.

The Commission examined whether existing constitutional provisions could respond to modern needs of efficient, smooth and effective government and socio-economic development. It organised the review around eleven broad fields:

1. parliamentary institutions and political stability;
2. electoral reform and standards in public life;
3. socio-economic change;
4. literacy, employment, social security and poverty;
5. Union-State relations;
6. decentralisation and local government;
7. enlargement of Fundamental Rights;
8. effectuation of Fundamental Duties;
9. DPSPs and Preambular objectives;
10. fiscal/monetary control and public audit; and
11. administration and standards in public life.

FACT: The Commission made **249 recommendations**: the eighth-edition source classifies **58** as requiring constitutional amendment, **86** as requiring legislation and **105** as capable of executive action.

ANALYSIS: This classification describes the Commission's proposed implementation route. It does not prove that any proposal was accepted.

Write the paragraph: *Claim* - the terms of reference combined institutional performance with socio-economic transformation. *Evidence* - eleven study fields and the 58/86/105 route classification. *Analysis* - the Commission

treated reform as multi-instrumental. *Qualification* - route classification did not establish acceptance.

CLOSING RECALL FLOW - TERMS OF REFERENCE AND STUDY FIELDS

START / CONCEPT: TERMS OF REFERENCE AND STUDY FIELDS

|

v

EXACT TERMS: terms of reference · performance audit · governance · socio-economic development · parliamentary democracy · basic structure

|

v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

|

v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

|

v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

|

v

ANSWER-GRABBING FORMULATION: The terms of reference defined both a broad performance audit and a firm constitutional boundary. A review spanning institutions and socio-economic development remained subject to parliamentary democracy and basic structure.

SESSION 3 - CONSULTATION, COMPOSITION CONTEXT AND INSTITUTIONAL IDENTITY

VISUAL-FIRST MAP

CONSTITUENT ASSEMBLY -> frames

ARTICLE 368 PARLIAMENT -> amends

SARKARIA / PUNCHHI -> Centre-State

ARC -> administration | LAW COMMISSION -> law reform

NCRWC -> reviews constitutional working

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Expert membership and consultation strengthened evidence without creating legal force.

Technical definition: Institutional identity determines whether a report persuades, amends, adjudicates or merely recommends.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Expert membership and consultation strengthened evidence without creating legal force. Institutional identity determines whether a report persuades, amends, adjudicates or merely recommends.

MUST-WRITE KEYWORDS

- eleven members
- consultation papers
- advisory report
- institutional identity
- legal force
- public responses

How to use them: Frame the answer through eleven members; define consultation papers, connect advisory report with institutional identity to explain the mechanism, and use legal force for the decisive comparison or qualification.

The Commission worked through consultation papers, expert studies, public responses and thematic deliberation before submitting its report. That method matters because a constitutional review commission has persuasive legitimacy only when it states the problem, receives competing views, explains the legal route and leaves the final choice to constitutionally authorised institutions.

Body/process	Constitutive source	Principal task	Why it is not the NCRWC
Constituent Assembly	Constituent process, 1946-49	Framed and adopted the Constitution	Exercised founding constituent authority
Parliament under Art 368	Constitution	Formally amends the Constitution	Legislative constituent power subject to procedure/basic structure
Law Commission	Executive resolution	Law-reform research and reports	Usually examines statutes/legal doctrine, not the whole constitutional system
Sarkaria/Punchhi Commissions	Executive commissions	Centre-State relations	Sectoral federal reviews
Administrative Reforms Commissions	Executive commissions	Public-administration reform	Administrative rather than comprehensive constitutional review
NCRWC	Government resolution, 2000	Reviewed fifty years of constitutional working	Temporary, advisory and expressly basic-structure bounded

Composition caution: Membership gave the Commission legal, parliamentary, administrative and public-policy experience, but expertise did not convert its report into law or constituent power.

Bounded comparison rule: Sarkaria and Punchhi primarily examined Centre-State relations; Administrative Reforms Commissions primarily addressed public administration; Law Commission reports usually address defined questions of law and legal reform. Their recommendations may overlap with an NCRWC theme, but they are separate mandates, reports and evidentiary authorities. Do not pool their recommendations under the label "NCRWC".

Write the paragraph: *Claim* - institutional identity controls authority. *Evidence* - the Constituent Assembly framed, Parliament amends under Article 368, while Sarkaria/Punchhi, ARC, Law Commission and NCRWC advise under distinct mandates. *Analysis* - overlapping subjects do not merge legal force. *Qualification* - expertise increases persuasion, not competence.

CLOSING RECALL FLOW - CONSULTATION, COMPOSITION CONTEXT AND INSTITUTIONAL IDENTITY

START / CONCEPT: CONSULTATION, COMPOSITION CONTEXT AND INSTITUTIONAL IDENTITY

|

v

EXACT TERMS: eleven members • consultation papers • advisory report • institutional identity • legal force • public responses

|

v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

|

v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

|

v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

|

v

ANSWER-GRABBING FORMULATION: Expert membership and consultation strengthened evidence without creating legal force. Institutional identity determines whether a report persuades, amends, adjudicates or merely recommends.

SESSION 4 - TEXT, INSTITUTIONS, CONVENTIONS AND POLITICAL PRACTICE

VISUAL-FIRST MAP

TEXT

- > institutions
- > statutes and rules
- > conventions and political culture
- > administrative capacity
- > rights, accountability, federal trust and remedies

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Constitutional working extends beyond written rules to institutional behaviour and outcomes.

Technical definition: Text is mediated by conventions, parties, incentives, administrative capacity and corrective institutions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Constitutional working extends beyond written rules to institutional behaviour and outcomes. Text is mediated by conventions, parties, incentives, administrative capacity and corrective institutions.

MUST-WRITE KEYWORDS

- constitutional text
- institutions
- conventions
- political incentives
- administrative capacity
- outcomes

How to use them: Frame the answer through constitutional text; define institutions, connect conventions with political incentives to explain the mechanism, and use administrative capacity for the decisive comparison or qualification.

The **working of the Constitution** is wider than compliance with its written Articles.

CONSTITUTIONAL TEXT

↓ implemented through

institutions + statutes + rules + conventions + political parties + administration

↓ tested by

rights outcomes + accountability + federal trust + legislative deliberation + remedies

Dimension	Constitutional question	Failure mode	Reform route
Text	Is power or right clearly allocated?	ambiguity, obsolete design or remedial gap	amendment within basic structure
Institution	Does the authorised body have independence/capacity?	vacancy, capture, delay, weak expertise	statute, finance, appointments, procedure
Convention	Do actors respect unwritten role restraints?	technically lawful but constitutionally corrosive conduct	political accountability, reason-giving, codification where needed
Political practice	Do parties and majorities preserve opposition and deliberation?	centralisation, criminalisation, opaque finance, weak committees	electoral/party and parliamentary reform
Federal practice	Are consultation and autonomy real?	unilateralism, delayed assent, fiscal mistrust	councils, negotiated federalism, judicial review
Rights enforcement	Can a right-holder obtain an effective remedy?	cost, delay, weak investigation, unequal access	courts, legal aid, administration and compliance

□□ *Kesavananda Bharati (1973)* supplies the basic-structure boundary; *Minerva Mills (1980)* emphasises limited amending power and Part III-Part IV harmony; *S.R. Bommai (1994)* demonstrates that federalism and secularism are

enforceable structural commitments. These later cases are governing law, not NCRWC recommendations.

Examiner line: Constitutional working is the conversion of text into restrained power, accountable institutions, effective rights and cooperative political practice.

Write the paragraph: *Claim* - constitutional working exceeds written text. *Evidence* - institutions, statutes, rules, conventions, parties and administration mediate constitutional power. *Analysis* - performance appears in accountability, rights and remedies. *Qualification* - poor outcomes do not automatically prove defective constitutional wording.

CLOSING RECALL FLOW - TEXT, INSTITUTIONS, CONVENTIONS AND POLITICAL PRACTICE

START / CONCEPT: TEXT, INSTITUTIONS, CONVENTIONS AND POLITICAL PRACTICE

|

v

EXACT TERMS: constitutional text · institutions · conventions · political incentives ·
administrative capacity · outcomes

|

v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route,
and verify the later legal effect independently.

|

v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation,
implementation and current law.

|

v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise,
chronology or thematic similarity.

|

v

ANSWER-GRABBING FORMULATION: Constitutional working extends beyond written rules to institutional
behaviour and outcomes. Text is mediated by conventions, parties, incentives, administrative
capacity and corrective institutions.

SESSION 5 - DIAGNOSIS: WHAT "WORKING" MEANT

VISUAL-FIRST MAP

DIAGNOSE WORKING

- +-- representation: crime / finance / defection
- +-- deliberation: scrutiny / ordinances
- +-- restraint: Governors / Article 356 / tribunals
- +-- delivery: vacancies / civil service / local devolution
- '-- correction: courts / audit / commissions / transparency

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A working review asks why formally valid institutions underperform in practice.

Technical definition: Diagnosis must locate the defect in text, convention, capacity, incentive or remedy before selecting reform.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A working review asks why formally valid institutions underperform in practice. Diagnosis must locate the defect in text, convention, capacity, incentive or remedy before selecting reform.

MUST-WRITE KEYWORDS

- institutional diagnosis
- text gap
- convention failure
- capacity deficit
- incentive failure
- remedy gap

How to use them: Frame the answer through institutional diagnosis; define text gap, connect convention failure with capacity deficit to explain the mechanism, and use incentive failure for the decisive comparison or qualification.

The NCRWC's report treated constitutional failure mainly as a problem of **institutional practice**, not absence of a constitutional text. Its principal concern clusters were:

Concern cluster	NCRWC diagnosis (historical, 2002)	Analytical use
Democratic trust	Government and public services had become detached from popular sovereignty and dignity	Constitution can fail through behaviour without textual collapse
Political integrity	Criminalisation, corruption, defections and opaque party finance	Electoral/party reform is constitutional maintenance
Institutional performance	Legislature, executive, administration and justice suffered delay, cost and weak accountability	Efficiency and constitutionalism must be reconciled
Social transformation	Rights, education, employment and welfare commitments were under-realised	Formal guarantees require institutions and resources
Federal/local design	Consultation and devolution were inadequate	Constitutional division needs cooperative practice
Justice delivery	Delay, weak investigation/prosecution and limited access undermined rule of law	Remedies are part of constitutional effectiveness

Status caution: These were the Commission's assessments at the time of its report. Do not present its historical data or rhetoric as a verified 2026 condition.

5.1 Contemporary working-of-Constitution diagnostic map

The following are **bounded cross-links**, not claims that the NCRWC owns every field or caused every later reform:

Working problem	Governing anchor/evidence	What the diagnosis asks	Route usually tested first
Anti-defection	Tenth Schedule; <i>Kihoto Hollohan</i> (1992)	Does party discipline preserve confidence without destroying legislative judgment, and is adjudication timely/impartial?	House practice, ordinary law or constitutional amendment according to the proposed redesign
Criminalisation	Representation of the People Act, 1951; <i>Lily Thomas</i> (2013); <i>Public Interest Foundation</i> (2018)	Are disclosure, disqualification, party incentives and trial capacity aligned?	Legislation, disclosure rules, party regulation and court administration
Campaign finance	Election law; <i>Association for Democratic Reforms v Union of India</i> (2024)	Can voters trace political funding and can spending rules capture party/third-party expenditure?	Ordinary law, regulation, audit and disclosure
Legislative scrutiny	Articles 107-111/196-201; House rules and committees	Are Bills, budgets and delegated legislation examined with time, expertise and opposition participation?	Rules, conventions, committee resources and legislation
Ordinances	Articles 123 and 213; <i>D.C. Wadhwa</i> (1987); <i>Krishna Kumar Singh</i> (2017)	Is exceptional law-making being used for genuine urgency rather than routine bypass of legislatures?	Convention, political accountability and judicial review; amendment only if text is the proven defect
Governors and Article 356	Articles 155-156, 163, 174, 200-201 and 356; <i>S.R. Bommai</i> (1994)	Are discretion, assent, floor tests and emergency power exercised with reasons, restraint and federal respect?	Convention, legislation where competent, judicial review and only targeted amendment
Local devolution	Parts IX and IXA; Eleventh and Twelfth Schedules	Have functions, funds and functionaries actually moved to elected local bodies?	State legislation, fiscal/administrative devolution and institutional capacity

Working problem	Governing anchor/evidence	What the diagnosis asks	Route usually tested first
Judicial vacancies and accountability	Articles 124, 217 and 124(4)-(5); <i>Supreme Court Advocates-on-Record Association v Union of India</i> (2015)	Can appointments be timely and transparent while preserving judicial independence?	Procedure, secretariat/capacity and, for structural redesign, constitutional amendment
Tribunals	Articles 323A-323B; <i>L. Chandra Kumar</i> (1997)	Do expertise and speed coexist with independence and High Court judicial review?	Statute, appointments/process reform and constitutional limits
Civil service	Articles 309-311; <i>T.S.R. Subramanian</i> (2013)	Are tenure, written directions, professionalism and accountability protected from arbitrary transfer and impunity?	Statute, service rules and administrative reform
Commissions and watchdogs	Constitutional, statutory and executive bodies must be identified separately	Are appointment, tenure, finance, reporting and enforcement powers adequate to the body's legal status?	Match reform to the body's constitutive source
Transparency and corruption	RTI Act 2005; CVC Act 2003; Lokpal and Lokayuktas Act 2013	Do information, audit, whistle-blowing, investigation and sanction systems create answerability?	Legislation, rules, institutional capacity and enforcement
Cooperative federalism	Articles 263 and 279A; intergovernmental institutions	Are consultation, fiscal predictability and dispute-resolution mechanisms used before unilateral escalation?	Councils, conventions, negotiated policy and targeted legal change

Diagnostic discipline: A current controversy is evidence of institutional working, not proof that the constitutional text is defective and not proof that an NCRWC recommendation was adopted.

Write the paragraph: *Claim* - constitutional underperformance must be disaggregated. *Evidence* - anti-defection, political finance, scrutiny, ordinances, Governors, local devolution, judicial capacity and civil-service integrity involve different legal anchors. *Analysis* - each failure has a distinct mechanism. *Qualification* - these are bounded cross-links, not all NCRWC-owned doctrines.

CLOSING RECALL FLOW - DIAGNOSIS: WHAT "WORKING" MEANT

START / CONCEPT: DIAGNOSIS: WHAT "WORKING" MEANT

|

v

EXACT TERMS: institutional diagnosis · text gap · convention failure · capacity deficit · incentive failure · remedy gap

|

v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

|

v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

|

v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

|

v

ANSWER-GRABBING FORMULATION: A working review asks why formally valid institutions underperform in practice. Diagnosis must locate the defect in text, convention, capacity, incentive or remedy before selecting reform.

SESSION 6 - HIGH-YIELD RECOMMENDATIONS

VISUAL-FIRST MAP

249 RECOMMENDATIONS

- +-- elections + political parties
- +-- Parliament + State legislatures
- +-- executive + civil services + integrity institutions
- +-- judiciary + tribunals
- +-- federalism + decentralisation
- '-- Fundamental Rights + DPSPs + Duties

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The NCRWC organised reform across rights, elections, legislatures, courts, federalism and administration.

Technical definition: Exact proposal, required legal route and present status must remain distinct in every cluster.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The NCRWC organised reform across rights, elections, legislatures, courts, federalism and administration. Exact proposal, required legal route and present status must remain distinct in every cluster.

MUST-WRITE KEYWORDS

- rights
- elections
- Parliament
- judiciary
- federalism
- decentralisation
- recommendation clusters

How to use them: Frame the answer through rights; define elections, connect Parliament with judiciary to explain the mechanism, and use federalism for the decisive comparison or qualification.

6.1 Fundamental Rights, property, DPSPs and Duties

Area	□ Recommendation	Current-law caution
Rights	Add express rights against torture, to compensation for unlawful deprivation of life/liberty, privacy/family life, access to courts/speedy justice, equal justice/legal aid and environmental necessities	Some subjects later developed through judgments/statutes; that does not make the NCRWC wording constitutional text
Speech/equality	Expand express discrimination and speech/media formulations	Not enacted merely because similar values appear in case law
Education	Enlarge the proposed education guarantee for specified groups	Check current FACT: Art 21A, not the NCRWC draft
Emergency	Protect additional rights from suspension beyond Arts 20 and 21	Current law remains governed by FACT: Arts 358-359
Property	Recast Art 300A to require public purpose, non-arbitrariness and rehabilitation protection for specified SC/ST land	□ Proposal, not the text of Art 300A
DPSPs	Rename Part IV and create implementation-review mechanisms	Non-binding
Duties	Add voting, tax and family-responsibility duties; implement the Verma Committee's operationalisation proposals	Non-binding

6.2 Parliament and the executive

- □ define and delimit legislative privileges;
- □ create standing committees for constitutional amendments/legislative planning;
- □ prescribe minimum annual sitting days: **Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and State Houses with fewer than 70 members 50**;
- □ use a **constructive vote of no confidence**, requiring notice by at least **20 per cent** of the House and a simultaneously proposed alternative leader;
- □ cap the Council of Ministers at **10 per cent** of the popular House;
- □ establish Lokpal/Lokayuktas within the proposed design;
- □ create statutory civil-service boards, promote lateral entry at senior levels and replace secrecy culture with transparency;
- □ enact public-interest-disclosure and anti-benami-corruption measures.

Trap: The later 91st Amendment used a **15 per cent** ceiling for Union/State ministries (with a minimum for States), not the NCRWC's 10 per cent recommendation. Similar subject does not mean identical adoption.

6.3 Federal and inter-State relations

- □ specify subjects requiring Inter-State Council consultation;
- □ place disaster/emergency management in the Concurrent List;
- □ establish an Inter-State Trade and Commerce Commission;
- □ consult the Chief Minister before appointing a Governor;
- □ retain Article 356 but use it only as a last resort and test majority on the floor;
- □ avoid dissolving a State Assembly before parliamentary approval of the proclamation;
- □ reform river-water adjudication; and
- □ prescribe a time-limit for Presidential action on a reserved State Bill.

The report proposed about **six months** for the Governor to decide whether to assent or reserve a State Bill and about **three months** for the President to assent, direct return or seek the Supreme Court's Article 143 opinion. These suggested periods never became the text of Articles 200-201.

ANALYSIS: Some recommendations overlap with judicial doctrines or later debates. Cite the governing Article/judgment for current law and NCRWC only for the reform case.

6.4 Judiciary and justice delivery

- □ create a constitutional National Judicial Commission for Supreme Court appointments and a mechanism for judicial complaints;
- □ raise High Court judges' retirement age to **65** and Supreme Court judges' age to **68**;
- □ confine constitutional invalidation and contempt powers as proposed;
- □ establish judicial councils for planning/budgets;
- □ deliver higher-court judgments ordinarily within a specified time and clear arrears; and
- □ simplify the subordinate-court hierarchy and use plea bargaining/ADR.

Trap: NCRWC's National Judicial Commission is not the later NJAC constitutional scheme and is not the current collegium. Keep commission proposal, later amendment and case law separate.

The proposed Supreme Court appointments commission comprised the **Chief Justice of India as Chairperson, the two senior-most Supreme Court judges, the Union Law Minister and one eminent person nominated by the President after consulting the CJI**. The NCRWC treated its composition and establishment as integral to judicial independence.

6.5 Local government and weaker sections

- ☐ give Panchayats/Municipalities clearer exclusive functions and fiscal domains;
- ☐ strengthen audit, dissolution safeguards and election-law uniformity;
- ☐ separate delimitation/reservation/rotation from State Election Commissions;
- ☐ improve SC/ST/BC representation, education and reservation administration;
- ☐ strengthen atrocity-law enforcement and institutions for bonded-labour rehabilitation; and
- ☐ adapt local-government reforms to North-East constitutional traditions.

6.6 Elections, parties and anti-defection

Field	Recommendation
Criminalisation	Disqualify specified serious accused/convicted persons and create speedy special courts/benches
Election disputes	Dedicated election benches/special courts
Multiple seats	Prevent one candidate contesting the same office from more than one constituency
Model Code	Give the Model Code statutory force
ECI appointment	Multi-office selection body including government, opposition and presiding officers
Political parties	Comprehensive law on internal functioning, accounts, candidate integrity and funding disclosure
Anti-defection	Defectors resign and recontest; bar remunerative office; vest decision in ECI rather than Speaker/Chairman

ANALYSIS: The current law may differ on every row. Use `Election-Commission.md`, `Political-Parties.md` and `Anti-Defection-Law.md` for the operative position.

Exact ECI recommendation: Prime Minister, Leaders of Opposition in both Houses, Lok Sabha Speaker and Rajya Sabha Deputy Chairman. This is an NCRWC proposal, not the current appointment law.

6.7 Executive, civil services, integrity institutions and governance

Field	□ NCRWC recommendation	Status boundary
Civil-service management	Statutory Civil Services/Personnel Boards for placements, promotions and transfers	A proposal for institutional insulation; not a statement that every current cadre system follows it
Senior recruitment	Open posts above a suggested senior level, including recruitment from outside government	Lateral entry is a policy tool; each later scheme needs separate authority and attribution
Service accountability	Re-examine Article 311 safeguards so honest officials remain protected while disciplinary processes become effective	Article 311 remains constitutional law; the report did not amend it
Information culture	Guarantee meaningful access to information and replace secrecy with transparency and participation	RTI Act 2005 is later legislation; thematic convergence alone does not prove NCRWC causation
Whistle-blowing	Enact public-interest-disclosure protection against retaliation	Later legislation has its own text, commencement and implementation history
Corruption control	Strengthen confiscation/benami measures, CVC arrangements, Lokpal and State Lokayuktas	Later statutes are not automatic or exact adoption
Audit and legislative institutions	Strengthen PAC follow-up; consider an Audit Board; extend accounting standards to publicly funded bodies	CAG's present constitutional position must be stated from Articles 148-151
Commissions of Inquiry	Improve time, reporting and follow-up discipline	An inquiry commission remains distinct from a permanent constitutional watchdog

Institutional logic: appointments and tenure protect independence; information and audit expose failure; investigation and sanctions correct wrongdoing; legislative reporting restores democratic control. Constitutionalising every step can create rigidity, while leaving every step to executive discretion can weaken credibility.

Write the paragraph: *Claim* - the NCRWC offered a connected institutional reform architecture. *Evidence* - proposals spanned elections, legislatures, executive services, judiciary, federalism, local bodies, rights, DPSPs and duties. *Analysis* - legitimacy, restraint and delivery reinforce one another. *Qualification* - every proposal remained non-binding.

CLOSING RECALL FLOW - HIGH-YIELD RECOMMENDATIONS

START / CONCEPT: HIGH-YIELD RECOMMENDATIONS

|

v

EXACT TERMS: rights · elections · Parliament · judiciary · federalism · decentralisation · recommendation clusters

|

v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

|

v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

|

v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

|

v

ANSWER-GRABBING FORMULATION: The NCRWC organised reform across rights, elections, legislatures, courts, federalism and administration. Exact proposal, required legal route and present status must remain distinct in every cluster.

SESSION 7 - RECOMMENDATION-BY-RECOMMENDATION IMPLEMENTATION AUDIT

VISUAL-FIRST MAP

PROPOSAL

- > later instrument
- > route + wording + institution
- > legal effect
- > official attribution
- > exact / modified / related / judicial / displaced / pending

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Implementation is proved by legal route, wording and effect rather than chronology alone.

Technical definition: Exact, modified, similar, judicial, displaced and pending are different status conclusions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Implementation is proved by legal route, wording and effect rather than chronology alone. Exact, modified, similar, judicial, displaced and pending are different status conclusions.

MUST-WRITE KEYWORDS

- **implementation audit**
- **legal instrument**
- **wording comparison**
- **legal effect**
- **attribution**
- **current status**

How to use them: Frame the answer through implementation audit; define legal instrument, connect wording comparison with legal effect to explain the mechanism, and use attribution for the decisive comparison or qualification.

Implementation must be tested against the exact proposal, later instrument and legal result.

NCRWC proposal area	Later development	Audit verdict
Council of Ministers ceiling at 10%	91st Amendment (2003) adopted a 15% ceiling, with a State minimum	Related reform, not exact adoption
Stronger transparency/open government	Right to Information Act 2005	Broadly convergent subject; do not claim causal implementation without official evidence
Education guarantee	86th Amendment inserted Art 21A in 2002	Overlapping constitutional reform chronology; wording/scope must be compared separately
Lokpal/Lokayukta framework	Lokpal and Lokayuktas Act 2013	Later statute with its own design; NCRWC recommendation was not self-executing
Judicial appointments commission	99th Amendment/NJAC enacted in 2014 and invalidated in 2015	Proposal did not become the current appointments system
Plea bargaining/ADR expansion	Criminal-procedure and legal-services reforms developed later	Functional follow-through varies by instrument; not proof of wholesale acceptance
Political-party law/internal democracy	No comprehensive party law implementing the proposed code	Substantially pending as a reform field
Anti-defection decision by ECI, resignation/recontest and office bar	Tenth Schedule continues to place decision with presiding officer, subject to review	Core proposal not implemented

NCRWC proposal area	Later development	Audit verdict
Governor appointment through a plural committee	Arts 155-156 framework remains	Proposal not enacted
Moving disaster management to Concurrent List	Disaster Management Act 2005 created a statutory framework without that List transfer	Statutory response, not the recommended constitutional relocation
Political-finance transparency	Later disclosure law and the 2024 electoral-bonds judgment changed the legal field	Related legal development; not proof of wholesale adoption of the NCRWC party-law package
Civil Services Boards	Some services/cadres use tenure and board mechanisms under later rules or directions	Sector-specific/modified development; do not claim nationwide exact implementation
Local devolution	Parts IX/IXA pre-dated NCRWC; later State action varies	NCRWC sought deeper operationalisation, not creation of the constitutional local-government framework

Audit rule: Similarity, sequence and common policy language do not establish implementation. Write "implemented", "partly reflected", "modified", "rejected", "overtaken" or "pending" only after comparing the exact recommendation with the later legal instrument.

Write the paragraph: *Claim* - implementation is a causal and legal conclusion. *Evidence* - the 10 per cent ministry proposal differs from the 91st Amendment's 15 per cent ceiling, while the 2005 disaster statute made no List transfer. *Analysis* - wording and effect matter. *Qualification* - chronology and similarity alone prove nothing.

CLOSING RECALL FLOW - RECOMMENDATION-BY-RECOMMENDATION IMPLEMENTATION AUDIT

START / CONCEPT: RECOMMENDATION-BY-RECOMMENDATION IMPLEMENTATION AUDIT

|
v

EXACT TERMS: implementation audit • legal instrument • wording comparison • legal effect • attribution • current status

|
v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

|
v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

|
v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

|
v

ANSWER-GRABBING FORMULATION: Implementation is proved by legal route, wording and effect rather than chronology alone. Exact, modified, similar, judicial, displaced and pending are different status conclusions.

SESSION 8 - WORKING-OF-CONSTITUTION EVALUATION FRAMEWORK

VISUAL-FIRST MAP

PROBLEM FOUND

- +-- convention/procedure -> rule or political practice
- +-- capacity -> administration
- +-- statutory gap -> ordinary legislation
- +-- text/allocation -> Article 368
- +-- specified federal change -> State ratification
- '-- open-textured rule -> judicial interpretation

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A performance dashboard converts broad constitutional values into testable institutional questions.

Technical definition: Legislative scrutiny, executive responsibility, judicial access, federal trust and effective rights require separate indicators.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A performance dashboard converts broad constitutional values into testable institutional questions. Legislative scrutiny, executive responsibility, judicial access, federal trust and effective rights require separate indicators.

MUST-WRITE KEYWORDS

- performance dashboard
- legislative scrutiny
- executive accountability
- judicial access
- federal trust
- rights enforcement

How to use them: Frame the answer through performance dashboard; define legislative scrutiny, connect executive accountability with judicial access to explain the mechanism, and use federal trust for the decisive comparison or qualification.

Constitutional morality

Constitutional morality means fidelity to constitutional forms, equal citizenship, institutional roles, reasoned procedure and limits on power. It is not personal morality. *Navtej Singh Johar v. Union of India (2018)* used constitutional morality and transformative constitutionalism in a rights setting; the doctrine remains bounded by text, structure and precedent.

Accountability and legislative functioning

- political accountability: elections, confidence, opposition and public reason;
- legal accountability: judicial review, rights and statutory remedies;
- financial accountability: legislative control, CAG and audit;
- administrative accountability: records, reasons, transparency and grievance redress;
- parliamentary quality: sitting time, committees, scrutiny of Bills and delegated legislation.

Coalition, majority and centralisation

Coalitions may enlarge bargaining and federal voice but also fragment responsibility. Stable single-party majorities may improve decisiveness but can centralise agenda control. The constitutional test is not the party configuration; it is whether deliberation, opposition, federal consultation, rights and institutional autonomy survive.

Reform-method ladder

diagnose exact failure
 ↓
 practice/convention repair
 ↓ if insufficient
 executive rule or institutional capacity
 ↓ if legal authority needed
 ordinary legislation
 ↓ if constitutional text must change
 Article 368 amendment
 ↓ always
 basic structure + rights + federalism + implementation review

Route-matching matrix

Defect located	Proper route	Example	Limitation
Rule or convention is weak	House rule, cabinet norm, reason-giving convention	more committee scrutiny; restraint in ordinance use	depends on political compliance
Administration lacks people, data or process	executive/administrative reform	vacancy management, court infrastructure, professional secretariats	cannot override statute or Constitution
Rights, duties or institutions need enforceable detail	ordinary legislation	transparency, party finance, tribunal design, whistle-blower protection	must remain within legislative competence and rights
Constitutional text allocates power inadequately	Article 368 amendment	redesign of a constitutional appointment body	subject to special majority and basic structure
Specified federal provisions are altered	Article 368 plus ratification by at least half the States	changes within the proviso to Article 368(2)	State ratification is issue-specific, not universal
Open-textured constitutional rule needs application	judicial interpretation	basic structure, floor-test review, tribunal independence	adjudication cannot substitute a complete policy code

Route rule: Choose the least legally sufficient route. "Reform" is not synonymous with "constitutional amendment".

Write the paragraph: *Claim* - reform should use the least legally sufficient route. *Evidence* - rules repair procedure, administration repairs capacity, statutes create enforceable detail and Article 368 changes constitutional allocation. *Analysis* - route matching avoids rigidity and evasion. *Qualification* - specified federal amendments additionally need State ratification.

CLOSING RECALL FLOW - WORKING-OF-CONSTITUTION EVALUATION FRAMEWORK

START / CONCEPT: WORKING-OF-CONSTITUTION EVALUATION FRAMEWORK

|

v

EXACT TERMS: performance dashboard · legislative scrutiny · executive accountability · judicial access · federal trust · rights enforcement

|

v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

|

v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

|

v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

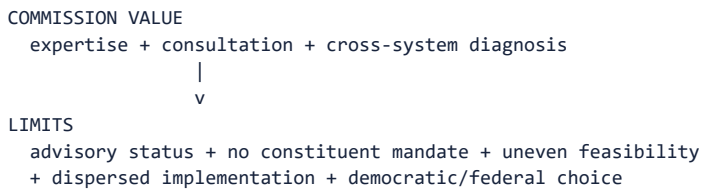
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v

ANSWER-GRABBING FORMULATION: A performance dashboard converts broad constitutional values into testable institutional questions. Legislative scrutiny, executive responsibility, judicial access, federal trust and effective rights require separate indicators.

SESSION 9 - EVALUATION: HOW TO USE A COMMISSION REPORT

VISUAL-FIRST MAP



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A commission report is evidence and a reform menu, not operative law.

Technical definition: Evaluation tests diagnosis, constitutional route, feasibility, incentives, implementation and reviewability.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A commission report is evidence and a reform menu, not operative law. Evaluation tests diagnosis, constitutional route, feasibility, incentives, implementation and reviewability.

MUST-WRITE KEYWORDS

- **commission report**
- **reform menu**
- **feasibility**
- **political incentives**
- **implementation**
- **reviewability**

How to use them: Frame the answer through commission report; define reform menu, connect feasibility with political incentives to explain the mechanism, and use implementation for the decisive comparison or qualification.

Strengths

- comprehensive, cross-institutional review rather than isolated amendment;
- expressly respected parliamentary democracy and basic structure;
- separated constitutional, legislative and executive routes;
- connected rights with governance capacity, federalism and accountability.

Limitations

- advisory status meant no self-executing force;
- **mandate:** it reviewed working within an express continuity framework; critics could regard that as too narrow for foundational redesign, while that same limit protected constitutional continuity;
- **consultation:** consultation papers and responses broadened evidence, but an executive-appointed commission did not possess the democratic mandate of a constituent assembly or elected legislature;
- **basic-structure assurance:** the terms promised non-interference, but only a court can finally decide whether an enacted amendment damages basic structure;
- **implementation:** responsibility was dispersed across Parliament, State legislatures, executives, courts and institutions, so there was no single implementation switch;
- **democratic legitimacy:** contested institutional redesign requires legislative debate, and some federal amendments require State ratification;
- **selectivity:** 249 recommendations varied in urgency, legal route and quality; acceptance or rejection must be recommendation-specific rather than all-or-nothing;

- breadth produced proposals of uneven precision and political feasibility; and
- later law may resemble, modify or reject a proposal without formally "implementing the NCRWC".

ANALYSIS: The best assessment is **selective constitutional maintenance**, not wholesale implementation. Test each proposal against basic structure, federalism, rights, democratic accountability and the current legal position.

Write the paragraph: *Claim* - NCRWC is strongest as a diagnostic menu, not a blueprint. *Evidence* - broad consultation and cross-institutional recommendations coexist with advisory status and dispersed implementation. *Analysis* - democratic legitimacy requires elected choice. *Qualification* - select recommendations may still be adopted, modified or rejected.

CLOSING RECALL FLOW - EVALUATION: HOW TO USE A COMMISSION REPORT

START / CONCEPT: EVALUATION: HOW TO USE A COMMISSION REPORT

↓

EXACT TERMS: commission report · reform menu · feasibility · political incentives · implementation · reviewability

↓

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

↓

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

↓

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

↓

ANSWER-GRABBING FORMULATION: A commission report is evidence and a reform menu, not operative law. Evaluation tests diagnosis, constitutional route, feasibility, incentives, implementation and reviewability.

ANSWER ARCHITECTURE (10/15/20-MARK SUPPORT)

10.1 Demand map

Demand	Answer spine
Mandate/status	Resolution -> review-not-rewrite -> basic-structure limit -> advisory report
Major recommendations	Cluster by rights, institutions, federalism, justice and elections; do not list randomly
Relevance today	Institutional diagnosis -> independently verify later law -> selective reform
Commission reports and constitutional change	Expertise/consultation gains -> democratic/non-binding limit -> Parliament/courts control
Working versus text	Formal adequacy -> behavioural/capacity failures -> targeted reforms

10.2 Thesis options

- *The NCRWC's central insight was that India's constitutional deficit lay less in the text than in the working of parties, legislatures, administration and justice.*
- *Its recommendations are a reform menu, not a parallel Constitution: each must pass through the proper amendment, legislative or executive route and remain subject to basic structure.*
- *The Commission is most useful when cited diagnostically-linking a reform to a named institutional failure-not as authority that the reform is already law.*

10.3 Mark-scaled structures

Marks	Structure	Evidence
10	Identity/mandate -> 3 recommendation clusters -> non-binding verdict	3-4 named proposals
15	Terms -> diagnosis -> rights/institutions/federal/election reforms -> status caution	5-6 proposals
20	Mandate -> concern map -> thematic recommendations -> implementation test -> balanced conclusion	7-9 proposals with current-law qualifications

10.4 Evidence units

- **Claim:** the NCRWC was constitutionally self-limited. **Evidence:** ☐ terms required

parliamentary democracy and non-interference with basic structure. **Analysis:** review was reformist, not constituent.

Qualification: the Commission itself had no legal veto over later amendment.

- **Claim:** its anti-defection proposal separated adjudication from partisan presiding officers.

Evidence: ☐ vest decision in the ECI. **Analysis:** targets conflict of interest. **Qualification:** current Tenth Schedule still controls.

- **Claim:** its federal recommendations emphasised consultation. **Evidence:** ☐ CM consultation

for Governors and a stronger Inter-State Council. **Analysis:** addresses legitimacy and trust. **Qualification:** recommendation is not constitutional convention or law by itself.

SESSION 10 - MUST-KNOW FACTS

VISUAL-FIRST MAP

PRELIMS CORE -> date + chair + 11 members + advisory status

MAINS CORE -> mandate + clusters + working diagnosis

EVALUATION -> route + implementation evidence + criticism

VERDICT -> selective constitutional maintenance

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Exact chronology, route counts and recommendation figures anchor a reliable NCRWC answer.

Technical definition: The must-know facts establish Commission identity, advisory status, report chronology, recommendation routes and high-yield institutional proposals.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Exact chronology, route counts and recommendation figures anchor a reliable NCRWC answer. The must-know facts establish Commission identity, advisory status, report chronology, recommendation routes and high-yield institutional proposals.

MUST-WRITE KEYWORDS

- **must know facts**
- **NCRWC facts**
- **Commission chronology**
- **advisory status**
- **report presentation**
- **recommendation routes**
- **legislative sittings**
- **constructive no confidence**

How to use them: Frame the answer through must know facts; define NCRWC facts, connect Commission chronology with advisory status to explain the mechanism, and use report presentation for the decisive comparison or qualification.

- FACT: Government resolution, 2000; report, 2002.
- FACT: 11 members; chaired by M.N. Venkatachaliah.
- FACT: Review of **working**, not rewriting.
- FACT: Parliamentary democracy/basic structure were express limits.
- FACT: 249 recommendations: 58 constitutional, 86 legislative, 105 executive in the eighth-edition classification.
- ☐ Every substantive proposal remains a recommendation unless separately enacted/recognised.
- ANALYSIS: Later similarity is not proof of causal implementation.

Write the paragraph: *Claim* - a high-scoring answer separates identity, recommendation, implementation and present law. *Evidence* - exact dates, route counts and contrast examples provide anchors. *Analysis* - classification prevents legal-status errors. *Qualification* - no statistic or later reform should be attributed without a dated source.

CLOSING RECALL FLOW - MUST-KNOW FACTS

START / CONCEPT: MUST-KNOW FACTS

|

v

EXACT TERMS: must know facts · NCRWC facts · Commission chronology · advisory status · report presentation · recommendation routes · legislative sittings · constructive no confidence

|

v

MECHANISM / ARGUMENT: Identify the institutional defect, match it to the competent reform route, and verify the later legal effect independently.

|

v

CONSEQUENCE / CONTRAST: The answer can distinguish constitutional diagnosis from recommendation, implementation and current law.

|

v

UPSC TRAP / ANSWER-USE: Do not infer binding force or implementation merely from expertise, chronology or thematic similarity.

|

v

ANSWER-GRABBING FORMULATION: Exact chronology, route counts and recommendation figures anchor a reliable NCRWC answer. The must-know facts establish Commission identity, advisory status, report chronology, recommendation routes and high-yield institutional proposals.

UPSC TRAPS AND SOURCE DISCIPLINE

- Do not call NCRWC a constitutional or statutory body.
- Do not call the Venkatachaliah Commission a constituent assembly.
- Do not merge NCRWC, Sarkaria, Punchhi, Law Commission or Administrative Reforms Commission.
- Do not present a proposed right, ministry ceiling, appointment panel or MCC status as current law.
- Do not say a later statute adopted NCRWC unless an official source establishes that link.
- Write separately: FACT: current text · ☐ enacted law · ☐ holding · ☐ NCRWC proposal ·

ANALYSIS: evaluation.

Routing

- Parliament/executive: Parliament.md, PM-and-Council-of-Ministers.md
- Federalism/Governor: Centre-State-Relations.md, Governor-and-CM.md
- Elections/parties/defection: Election-Commission.md, Political-Parties.md, Anti-Defection-Law.md

- Judiciary: Supreme-Court.md, High-Court.md
- Rights/DPSP/Duties: Fundamental-Rights.md, Directive-Principles.md,

POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Treat every NCRWC proposition as a 2002 recommendation unless a later constitutional amendment, statute, rule or judgment independently proves law.
- **Close distinction:** Separate constitutional text, institutional capacity, conventions, party practice, federal trust, rights outcomes and effective remedies.
- **Legal/source limit:** The official NCRWC report remains advisory; resemblance, chronology or shared policy language does not prove implementation or causation.

Semantic-completeness ownership and PYQ control

- **Identity:** the NCRWC was constituted by Government of India resolution on 22 February 2000, chaired by former CJI M.N. Venkatachaliah, and remained an executive, temporary and advisory body rather than a constitutional organ.
- **Mandate boundary:** it reviewed fifty years of constitutional working within parliamentary democracy and without disturbing basic structure. It did not exercise original constituent power or Parliament's Article 368 power.
- **Report control:** the eleven-member Commission adopted its report on 11 March 2002 and presented it on 31 March 2002. P.A. Sangma had resigned; the secretary and advisory-panel participants were not additional members.
- **Recommendation status:** the report's constitutional-amendment, legislative and executive routes describe how recommendations might be implemented. No recommendation became law by appearing in the report.
- **Working framework:** constitutional performance must be tested through text, statutes, institutions, conventions, parties, administration, federal consultation, legislative deliberation, rights outcomes and effective remedies.
- **Implementation method:** compare the exact recommendation with the later instrument and classify it as exact, modified, related, rejected, overtaken or pending. Similarity and sequence do not prove adoption or NCRWC causation.
- **High-yield mismatch controls:** the NCRWC proposed a 10% ministry ceiling, while the 91st Amendment uses 15%; its judicial commission was not the later NJAC and is not the collegium; its ECI appointment and anti-defection routes are not current law merely because reform debate continued.
- **Current-law owners:** Articles 200-201, the Tenth Schedule, election law, Parts IX/IXA, judicial appointments, RTI, Lokpal and disaster management must be stated from their current constitutional/statutory sources, not the report.
- **Evaluation:** the report remains valuable as a cross-institutional diagnosis and reform menu, but selective constitutional maintenance requires democratic legitimacy, feasibility, rights, federalism and basic-structure control.
- **Official-source control, checked 9 September 2026:** the Department of Legal Affairs and Inter-State Council portals remain the authoritative report repositories. No official consolidated implementation notification gives the report legal force. Routed constitutional-reform PYQs remain cross-owned.

Practice contract: Exactly 32 original MCQs follow. Correct options rotate A -> B -> C -> D eight times. Every option receives a substantive, unique, question-specific explanation, followed by one unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which description of the NCRWC is constitutionally accurate?

A. A temporary executive advisory commission constituted by Union government resolution. B. A parliamentary joint committee exercising Article 368 power. C. A permanent constitutional commission created by amendment. D. A constituent body elected to replace the Constitution.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The NCRWC arose from an executive resolution and could recommend but could not amend, adjudicate or exercise constituent power. [Option A, MCQ 1]
- **B - Incorrect:** The option states "A parliamentary joint committee exercising Article 368 power." The tested rule is: The NCRWC arose from an executive resolution and could recommend but could not amend, adjudicate or exercise constituent power. [Option B, MCQ 1]
- **C - Incorrect:** The option states "A permanent constitutional commission created by amendment." The tested rule is: The NCRWC arose from an executive resolution and could recommend but could not amend, adjudicate or exercise constituent power. [Option C, MCQ 1]
- **D - Incorrect:** The option states "A constituent body elected to replace the Constitution." The tested rule is: The NCRWC arose from an executive resolution and could recommend but could not amend, adjudicate or exercise constituent power. [Option D, MCQ 1]

Examiner trap 1: Institutional origin determines legal force: an executive commission is not a constitutional body.

MCQ 2

Which chronology is correct?

A. Constituted 22 February 2000; report presented 31 March 2002. B. Constituted 26 January 1950; report presented 2000. C. Constituted 31 March 2002; report presented 22 February 2000. D. Constituted by the 91st Amendment; report presented in 2003.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "Constituted 22 February 2000; report presented 31 March 2002." The tested rule is: The verified dates are 22 February 2000 for the resolution and 31 March 2002 for presentation; the report was adopted on 11 March 2002. [Option A, MCQ 2]
- **B - Correct:** This is the precise rule: The verified dates are 22 February 2000 for the resolution and 31 March 2002 for presentation; the report was adopted on 11 March 2002. [Option B, MCQ 2]
- **C - Incorrect:** The option states "Constituted 31 March 2002; report presented 22 February 2000." The tested rule is: The verified dates are 22 February 2000 for the resolution and 31 March 2002 for presentation; the report was adopted on 11 March 2002. [Option C, MCQ 2]
- **D - Incorrect:** The option states "Constituted by the 91st Amendment; report presented in 2003." The tested rule is: The verified dates are 22 February 2000 for the resolution and 31 March 2002 for presentation; the report was adopted on 11 March 2002. [Option D, MCQ 2]

Examiner trap 2: Do not reverse constitution, adoption and presentation dates.

MCQ 3

Who chaired the eleven-member NCRWC?

- A. Justice R.S. Sarkaria. B. Justice B.P. Jeevan Reddy. C. Justice M.N. Venkatachaliah, former Chief Justice of India.
D. Dr Subhash C. Kashyap.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Justice R.S. Sarkaria." The tested rule is: Justice M.N. Venkatachaliah chaired the eleven-member Commission; the chair is included in that count. [Option A, MCQ 3]
- **B - Incorrect:** The option states "Justice B.P. Jeevan Reddy." The tested rule is: Justice M.N. Venkatachaliah chaired the eleven-member Commission; the chair is included in that count. [Option B, MCQ 3]
- **C - Correct:** This is the precise rule: Justice M.N. Venkatachaliah chaired the eleven-member Commission; the chair is included in that count. [Option C, MCQ 3]
- **D - Incorrect:** The option states "Dr Subhash C. Kashyap." The tested rule is: Justice M.N. Venkatachaliah chaired the eleven-member Commission; the chair is included in that count. [Option D, MCQ 3]

Examiner trap 3: The presence of Justice Sarkaria did not turn NCRWC into the Sarkaria Commission.

MCQ 4

Which membership statement is correct?

- A. The secretary was the twelfth member. B. Advisory-panel members were automatically commissioners. C. The report was signed by twelve serving members. D. The Commission initially had eleven members including the Chair; P.A. Sangma later resigned.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "The secretary was the twelfth member." The tested rule is: The official composition contained eleven members including the Chair, while Dr Raghbir Singh served as secretary rather than member. [Option A, MCQ 4]
- **B - Incorrect:** The option states "Advisory-panel members were automatically commissioners." The tested rule is: The official composition contained eleven members including the Chair, while Dr Raghbir Singh served as secretary rather than member. [Option B, MCQ 4]
- **C - Incorrect:** The option states "The report was signed by twelve serving members." The tested rule is: The official composition contained eleven members including the Chair, while Dr Raghbir Singh served as secretary rather than member. [Option C, MCQ 4]
- **D - Correct:** This is the precise rule: The official composition contained eleven members including the Chair, while Dr Raghbir Singh served as secretary rather than member. [Option D, MCQ 4]

Examiner trap 4: Do not inflate membership by adding the secretary or advisory-panel participants.

MCQ 5

What was the core mandate boundary?

- A. Review working within parliamentary democracy without disturbing basic structure or features. B. Draft a presidential Constitution outside Article 368. C. Suspend judicial review during the review. D. Replace federalism with administrative regions.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The terms required review of fifty years' working within parliamentary democracy and without disturbing the Constitution's basic structure or features. [Option A, MCQ 5]
- **B - Incorrect:** The option states "Draft a presidential Constitution outside Article 368." The tested rule is: The terms required review of fifty years' working within parliamentary democracy and without disturbing the

Constitution's basic structure or features. [Option B, MCQ 5]

- **C - Incorrect:** The option states "Suspend judicial review during the review." The tested rule is: The terms required review of fifty years' working within parliamentary democracy and without disturbing the Constitution's basic structure or features. [Option C, MCQ 5]
- **D - Incorrect:** The option states "Replace federalism with administrative regions." The tested rule is: The terms required review of fifty years' working within parliamentary democracy and without disturbing the Constitution's basic structure or features. [Option D, MCQ 5]

Examiner trap 5: Review of working is constitutional maintenance, not authority to replace the constitutional settlement.

MCQ 6

Which statement best distinguishes review, amendment and replacement?

A. Every review report immediately changes constitutional text. B. Review recommends; Article 368 amends; replacement claims a fresh constituent mandate. C. Judicial interpretation and replacement are identical. D. State ratification is required for every ordinary law.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "Every review report immediately changes constitutional text." The tested rule is: A review is advisory, Article 368 supplies constituted amendment power, and constitutional replacement would require a distinct constituent claim. [Option A, MCQ 6]
- **B - Correct:** This is the precise rule: A review is advisory, Article 368 supplies constituted amendment power, and constitutional replacement would require a distinct constituent claim. [Option B, MCQ 6]
- **C - Incorrect:** The option states "Judicial interpretation and replacement are identical." The tested rule is: A review is advisory, Article 368 supplies constituted amendment power, and constitutional replacement would require a distinct constituent claim. [Option C, MCQ 6]
- **D - Incorrect:** The option states "State ratification is required for every ordinary law." The tested rule is: A review is advisory, Article 368 supplies constituted amendment power, and constitutional replacement would require a distinct constituent claim. [Option D, MCQ 6]

Examiner trap 6: Do not collapse advisory diagnosis, formal amendment and founding constituent power.

MCQ 7

Which comparison is accurate?

A. All commissions share one pooled constitutional mandate. B. Law Commission reports exercise judicial review. C. Sarkaria/Punchhi focus on Centre-State relations, ARC on administration, and NCRWC on constitutional working. D. NCRWC was a successor Constituent Assembly.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "All commissions share one pooled constitutional mandate." The tested rule is: The bodies may overlap thematically but retain separate constitutive sources, mandates and recommendation ownership. [Option A, MCQ 7]
- **B - Incorrect:** The option states "Law Commission reports exercise judicial review." The tested rule is: The bodies may overlap thematically but retain separate constitutive sources, mandates and recommendation ownership. [Option B, MCQ 7]
- **C - Correct:** This is the precise rule: The bodies may overlap thematically but retain separate constitutive sources, mandates and recommendation ownership. [Option C, MCQ 7]
- **D - Incorrect:** The option states "NCRWC was a successor Constituent Assembly." The tested rule is: The bodies may overlap thematically but retain separate constitutive sources, mandates and recommendation ownership. [Option D, MCQ 7]

Examiner trap 7: Commission names are not interchangeable citations.

MCQ 8

The officially reported recommendation-route count is:

A. 249 constitutional amendments. B. 58 total recommendations. C. 86 executive actions and 105 statutes. D. 249 total: 58 constitutional, 86 legislative and 105 executive.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "249 constitutional amendments." The tested rule is: The 249 recommendations were classified as 58 requiring constitutional amendment, 86 legislation and 105 executive action. [Option A, MCQ 8]
- **B - Incorrect:** The option states "58 total recommendations." The tested rule is: The 249 recommendations were classified as 58 requiring constitutional amendment, 86 legislation and 105 executive action. [Option B, MCQ 8]
- **C - Incorrect:** The option states "86 executive actions and 105 statutes." The tested rule is: The 249 recommendations were classified as 58 requiring constitutional amendment, 86 legislation and 105 executive action. [Option C, MCQ 8]
- **D - Correct:** This is the precise rule: The 249 recommendations were classified as 58 requiring constitutional amendment, 86 legislation and 105 executive action. [Option D, MCQ 8]

Examiner trap 8: Route counts describe proposed implementation vehicles, not completed implementation.

MCQ 9

Which rights proposal belongs to the NCRWC report?

A. Express protection against torture and stronger access to speedy justice. B. Deletion of Article 32. C. Suspension of equality during ordinary governance. D. Conversion of every DPSP into an immediately enforceable writ.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The report proposed express rights-related additions including protection against torture and access to courts and reasonably speedy justice. [Option A, MCQ 9]
- **B - Incorrect:** The option states "Deletion of Article 32." The tested rule is: The report proposed express rights-related additions including protection against torture and access to courts and reasonably speedy justice. [Option B, MCQ 9]
- **C - Incorrect:** The option states "Suspension of equality during ordinary governance." The tested rule is: The report proposed express rights-related additions including protection against torture and access to courts and reasonably speedy justice. [Option C, MCQ 9]
- **D - Incorrect:** The option states "Conversion of every DPSP into an immediately enforceable writ." The tested rule is: The report proposed express rights-related additions including protection against torture and access to courts and reasonably speedy justice. [Option D, MCQ 9]

Examiner trap 9: A proposed right is not current constitutional text merely because later doctrine protects a related interest.

MCQ 10

Which statement correctly captures the Duties/DPSP approach?

A. Abolish Part IV and Part IVA. B. Strengthen implementation review and propose additional duties such as voting and tax responsibility. C. Make every Directive Principle superior to every Fundamental Right. D. Allow duties to extinguish judicial review.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "Abolish Part IV and Part IVA." The tested rule is: The Commission sought stronger effectuation of DPSPs and proposed additional duties, while Part III-Part IV harmony remains controlled by constitutional doctrine. [Option A, MCQ 10]
- **B - Correct:** This is the precise rule: The Commission sought stronger effectuation of DPSPs and proposed additional duties, while Part III-Part IV harmony remains controlled by constitutional doctrine. [Option B, MCQ 10]
- **C - Incorrect:** The option states "Make every Directive Principle superior to every Fundamental Right." The tested rule is: The Commission sought stronger effectuation of DPSPs and proposed additional duties, while Part III-Part IV harmony remains controlled by constitutional doctrine. [Option C, MCQ 10]
- **D - Incorrect:** The option states "Allow duties to extinguish judicial review." The tested rule is: The Commission sought stronger effectuation of DPSPs and proposed additional duties, while Part III-Part IV harmony remains controlled by constitutional doctrine. [Option D, MCQ 10]

Examiner trap 10: Do not convert advisory duty proposals into enforceable Fundamental Duties.

MCQ 11

What did the NCRWC propose concerning Article 300A?

A. Restore Article 31 unchanged. B. Limit property protection to citizens. C. Add public-purpose and non-arbitrariness safeguards with specified rehabilitation protection. D. Permit deprivation by unsupported executive order.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Restore Article 31 unchanged." The tested rule is: The report proposed stronger Article 300A safeguards, but the operative text still requires deprivation by authority of law. [Option A, MCQ 11]
- **B - Incorrect:** The option states "Limit property protection to citizens." The tested rule is: The report proposed stronger Article 300A safeguards, but the operative text still requires deprivation by authority of law. [Option B, MCQ 11]
- **C - Correct:** This is the precise rule: The report proposed stronger Article 300A safeguards, but the operative text still requires deprivation by authority of law. [Option C, MCQ 11]
- **D - Incorrect:** The option states "Permit deprivation by unsupported executive order." The tested rule is: The report proposed stronger Article 300A safeguards, but the operative text still requires deprivation by authority of law. [Option D, MCQ 11]

Examiner trap 11: Separate the Commission's proposed wording from current Article 300A.

MCQ 12

Which legislative-sitting recommendation is correct?

A. Lok Sabha 60 and Rajya Sabha 50 days. B. All Houses exactly 100 days. C. Only State legislatures received a minimum. D. Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and under-70-member Houses 50 days.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Lok Sabha 60 and Rajya Sabha 50 days." The tested rule is: The report specified differentiated annual minima: Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and smaller State Houses 50. [Option A, MCQ 12]

- **B - Incorrect:** The option states "All Houses exactly 100 days." The tested rule is: The report specified differentiated annual minima: Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and smaller State Houses 50. [Option B, MCQ 12]
- **C - Incorrect:** The option states "Only State legislatures received a minimum." The tested rule is: The report specified differentiated annual minima: Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and smaller State Houses 50. [Option C, MCQ 12]
- **D - Correct:** This is the precise rule: The report specified differentiated annual minima: Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and smaller State Houses 50. [Option D, MCQ 12]

Examiner trap 12: Do not transpose the Union and State sitting-day figures.

MCQ 13

What legislative-process reform did the NCRWC support?

A. Committee scrutiny, public consultation and planned drafting before enactment. B. Automatic passage of all government Bills. C. Elimination of opposition time. D. Permanent replacement of legislatures by ordinances.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The report favoured expert and public input, Department-related Standing Committee scrutiny and more systematic legislative planning. [Option A, MCQ 13]
- **B - Incorrect:** The option states "Automatic passage of all government Bills." The tested rule is: The report favoured expert and public input, Department-related Standing Committee scrutiny and more systematic legislative planning. [Option B, MCQ 13]
- **C - Incorrect:** The option states "Elimination of opposition time." The tested rule is: The report favoured expert and public input, Department-related Standing Committee scrutiny and more systematic legislative planning. [Option C, MCQ 13]
- **D - Incorrect:** The option states "Permanent replacement of legislatures by ordinances." The tested rule is: The report favoured expert and public input, Department-related Standing Committee scrutiny and more systematic legislative planning. [Option D, MCQ 13]

Examiner trap 13: Legislative efficiency does not mean removing deliberation.

MCQ 14

A constructive vote of no confidence means:

A. The President selects a replacement government. B. A no-confidence motion is accompanied by a proposed alternative leader. C. The outgoing ministry remains indefinitely. D. Courts vote on legislative confidence.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "The President selects a replacement government." The tested rule is: The NCRWC proposed simultaneous identification of an alternative leader, with notice by at least twenty per cent of House membership. [Option A, MCQ 14]
- **B - Correct:** This is the precise rule: The NCRWC proposed simultaneous identification of an alternative leader, with notice by at least twenty per cent of House membership. [Option B, MCQ 14]
- **C - Incorrect:** The option states "The outgoing ministry remains indefinitely." The tested rule is: The NCRWC proposed simultaneous identification of an alternative leader, with notice by at least twenty per cent of House membership. [Option C, MCQ 14]
- **D - Incorrect:** The option states "Courts vote on legislative confidence." The tested rule is: The NCRWC proposed simultaneous identification of an alternative leader, with notice by at least twenty per cent of House membership. [Option D, MCQ 14]

Examiner trap 14: Constructive confidence preserves House responsibility; it does not judicialise government formation.

MCQ 15

Why is the 91st Amendment not exact adoption of the NCRWC ministry proposal?

A. It abolished the Council of Ministers. B. It applies only to local bodies. C. It uses a 15 per cent constitutional ceiling, while NCRWC proposed 10 per cent. D. It made the report binding.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "It abolished the Council of Ministers." The tested rule is: The later constitutional amendment addressed ministry size but selected a materially different ceiling and State minimum. [Option A, MCQ 15]
- **B - Incorrect:** The option states "It applies only to local bodies." The tested rule is: The later constitutional amendment addressed ministry size but selected a materially different ceiling and State minimum. [Option B, MCQ 15]
- **C - Correct:** This is the precise rule: The later constitutional amendment addressed ministry size but selected a materially different ceiling and State minimum. [Option C, MCQ 15]
- **D - Incorrect:** The option states "It made the report binding." The tested rule is: The later constitutional amendment addressed ministry size but selected a materially different ceiling and State minimum. [Option D, MCQ 15]

Examiner trap 15: The same policy field does not establish exact adoption.

MCQ 16

Which anti-defection package is accurately attributed to NCRWC?

A. Speaker's decision becomes wholly unreviewable. B. One-third splits receive permanent protection. C. Defectors automatically retain remunerative office. D. Resign and recontest, office bar, invalid destabilising vote and ECI decision on disqualification.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Speaker's decision becomes wholly unreviewable." The tested rule is: The Commission combined electoral consequences, an office bar, treatment of the destabilising vote and transfer of adjudication to the Election Commission. [Option A, MCQ 16]
- **B - Incorrect:** The option states "One-third splits receive permanent protection." The tested rule is: The Commission combined electoral consequences, an office bar, treatment of the destabilising vote and transfer of adjudication to the Election Commission. [Option B, MCQ 16]
- **C - Incorrect:** The option states "Defectors automatically retain remunerative office." The tested rule is: The Commission combined electoral consequences, an office bar, treatment of the destabilising vote and transfer of adjudication to the Election Commission. [Option C, MCQ 16]
- **D - Correct:** This is the precise rule: The Commission combined electoral consequences, an office bar, treatment of the destabilising vote and transfer of adjudication to the Election Commission. [Option D, MCQ 16]

Examiner trap 16: Do not add an unverified narrow-whip proposal to the NCRWC package.

MCQ 17

Which campaign-finance position did the NCRWC take?

A. Regulate contributions and expenditure, audit party/candidate accounts and improve donor-donor accountability. B. Keep all party accounts confidential. C. Treat corporate funding as constitutionally immune. D. Leave candidate and party expenditure permanently unrelated.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The report linked transparent funding to statutory audit, consolidated regulation and accountability of contributors and recipients. [Option A, MCQ 17]
- **B - Incorrect:** The option states "Keep all party accounts confidential." The tested rule is: The report linked transparent funding to statutory audit, consolidated regulation and accountability of contributors and recipients. [Option B, MCQ 17]
- **C - Incorrect:** The option states "Treat corporate funding as constitutionally immune." The tested rule is: The report linked transparent funding to statutory audit, consolidated regulation and accountability of contributors and recipients. [Option C, MCQ 17]
- **D - Incorrect:** The option states "Leave candidate and party expenditure permanently unrelated." The tested rule is: The report linked transparent funding to statutory audit, consolidated regulation and accountability of contributors and recipients. [Option D, MCQ 17]

Examiner trap 17: Later political-finance judgments are governing law, not proof of NCRWC authorship.

MCQ 18

Which appointment body did NCRWC recommend for the Election Commission?

A. The Supreme Court collegium alone. B. Prime Minister, opposition leaders in both Houses, Lok Sabha Speaker and Rajya Sabha Deputy Chairman. C. All Chief Ministers acting unanimously. D. The incumbent Chief Election Commissioner alone.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "The Supreme Court collegium alone." The tested rule is: The proposed multi-office body included government, opposition and parliamentary presiding officers; it is not the current appointment rule by virtue of the report. [Option A, MCQ 18]
- **B - Correct:** This is the precise rule: The proposed multi-office body included government, opposition and parliamentary presiding officers; it is not the current appointment rule by virtue of the report. [Option B, MCQ 18]
- **C - Incorrect:** The option states "All Chief Ministers acting unanimously." The tested rule is: The proposed multi-office body included government, opposition and parliamentary presiding officers; it is not the current appointment rule by virtue of the report. [Option C, MCQ 18]
- **D - Incorrect:** The option states "The incumbent Chief Election Commissioner alone." The tested rule is: The proposed multi-office body included government, opposition and parliamentary presiding officers; it is not the current appointment rule by virtue of the report. [Option D, MCQ 18]

Examiner trap 18: State the NCRWC panel as a recommendation, not operative law.

MCQ 19

Which civil-service proposal is correctly stated?

A. Remove all Article 311 protection without process. B. Make every post hereditary. C. Use statutory Civil Services/Personnel Boards for placements, promotions and transfers. D. Transfer service control to the Election Commission.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Remove all Article 311 protection without process." The tested rule is: The report proposed statutory personnel boards, modern evaluation and wider senior-level recruitment while retaining a calibrated protection-accountability balance. [Option A, MCQ 19]
- **B - Incorrect:** The option states "Make every post hereditary." The tested rule is: The report proposed statutory personnel boards, modern evaluation and wider senior-level recruitment while retaining a calibrated protection-accountability balance. [Option B, MCQ 19]

- **C - Correct:** This is the precise rule: The report proposed statutory personnel boards, modern evaluation and wider senior-level recruitment while retaining a calibrated protection-accountability balance. [Option C, MCQ 19]
- **D - Incorrect:** The option states "Transfer service control to the Election Commission." The tested rule is: The report proposed statutory personnel boards, modern evaluation and wider senior-level recruitment while retaining a calibrated protection-accountability balance. [Option D, MCQ 19]

Examiner trap 19: Administrative professionalism requires both insulation and answerability.

MCQ 20

Which governance chain best reflects NCRWC recommendations?

A. Secrecy, oral orders and immunity. B. No audit and no legislative reporting. C. Abolition of anti-corruption law. D. Information access, whistle-blower protection, audit follow-up and integrity institutions.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Secrecy, oral orders and immunity." The tested rule is: Transparency, protected disclosure, audit, confiscation tools, vigilance and ombudsman institutions formed a connected accountability architecture. [Option A, MCQ 20]
- **B - Incorrect:** The option states "No audit and no legislative reporting." The tested rule is: Transparency, protected disclosure, audit, confiscation tools, vigilance and ombudsman institutions formed a connected accountability architecture. [Option B, MCQ 20]
- **C - Incorrect:** The option states "Abolition of anti-corruption law." The tested rule is: Transparency, protected disclosure, audit, confiscation tools, vigilance and ombudsman institutions formed a connected accountability architecture. [Option C, MCQ 20]
- **D - Correct:** This is the precise rule: Transparency, protected disclosure, audit, confiscation tools, vigilance and ombudsman institutions formed a connected accountability architecture. [Option D, MCQ 20]

Examiner trap 20: Do not attribute every later integrity statute causally to NCRWC.

MCQ 21

Which statement describes the NCRWC's judicial appointments proposal?

A. A distinct constitutional National Judicial Commission, not the later NJAC and not the current collegium. B. Direct election of judges. C. Appointment by the Union Law Minister alone. D. A statutory tribunal replacing the Supreme Court.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The NCRWC proposed its own National Judicial Commission design; the 99th Amendment/NJAC and current collegium are separate legal arrangements. [Option A, MCQ 21]
- **B - Incorrect:** The option states "Direct election of judges." The tested rule is: The NCRWC proposed its own National Judicial Commission design; the 99th Amendment/NJAC and current collegium are separate legal arrangements. [Option B, MCQ 21]
- **C - Incorrect:** The option states "Appointment by the Union Law Minister alone." The tested rule is: The NCRWC proposed its own National Judicial Commission design; the 99th Amendment/NJAC and current collegium are separate legal arrangements. [Option C, MCQ 21]
- **D - Incorrect:** The option states "A statutory tribunal replacing the Supreme Court." The tested rule is: The NCRWC proposed its own National Judicial Commission design; the 99th Amendment/NJAC and current collegium are separate legal arrangements. [Option D, MCQ 21]

Examiner trap 21: Similar institutional names can conceal different composition and legal status.

MCQ 22

For Supreme Court appointments, the proposed Commission included:

A. All Chief Ministers and Governors. B. CJI, two senior-most Supreme Court judges, Union Law Minister and one eminent person. C. Only retired judges. D. Prime Minister, Speaker and CAG.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "All Chief Ministers and Governors." The tested rule is: The specified composition mixed three judicial members, the Union Law Minister and an eminent person nominated after consultation with the CJI. [Option A, MCQ 22]
- **B - Correct:** This is the precise rule: The specified composition mixed three judicial members, the Union Law Minister and an eminent person nominated after consultation with the CJI. [Option B, MCQ 22]
- **C - Incorrect:** The option states "Only retired judges." The tested rule is: The specified composition mixed three judicial members, the Union Law Minister and an eminent person nominated after consultation with the CJI. [Option C, MCQ 22]
- **D - Incorrect:** The option states "Prime Minister, Speaker and CAG." The tested rule is: The specified composition mixed three judicial members, the Union Law Minister and an eminent person nominated after consultation with the CJI. [Option D, MCQ 22]

Examiner trap 22: Do not import the later NJAC membership into the NCRWC design.

MCQ 23

Which tribunal proposition is current constitutional law?

A. Tribunals may exclude all High Court review. B. Executive control is irrelevant to independence. C. *L. Chandra Kumar* preserves High Court judicial review while tribunal design must secure expertise and independence. D. Every tribunal requires a constitutional amendment.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Tribunals may exclude all High Court review." The tested rule is: Tribunal reform usually proceeds by statute and administration, but it remains bounded by independence and the judicial-review holding in *L. Chandra Kumar*. [Option A, MCQ 23]
- **B - Incorrect:** The option states "Executive control is irrelevant to independence." The tested rule is: Tribunal reform usually proceeds by statute and administration, but it remains bounded by independence and the judicial-review holding in *L. Chandra Kumar*. [Option B, MCQ 23]
- **C - Correct:** This is the precise rule: Tribunal reform usually proceeds by statute and administration, but it remains bounded by independence and the judicial-review holding in *L. Chandra Kumar*. [Option C, MCQ 23]
- **D - Incorrect:** The option states "Every tribunal requires a constitutional amendment." The tested rule is: Tribunal reform usually proceeds by statute and administration, but it remains bounded by independence and the judicial-review holding in *L. Chandra Kumar*. [Option D, MCQ 23]

Examiner trap 23: Expertise cannot become a label for executive control or exclusion of constitutional review.

MCQ 24

Which federal recommendation is accurate?

A. Abolish the Inter-State Council. B. Delete Article 356 in all circumstances. C. Make Governors directly elected. D. Strengthen Inter-State Council consultation and establish an Article 307 trade-and-commerce body.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Abolish the Inter-State Council." The tested rule is: The NCRWC emphasised structured consultation under Article 263 and an Inter-State Trade and Commerce Commission under Article 307. [Option A, MCQ 24]
- **B - Incorrect:** The option states "Delete Article 356 in all circumstances." The tested rule is: The NCRWC emphasised structured consultation under Article 263 and an Inter-State Trade and Commerce Commission under Article 307. [Option B, MCQ 24]
- **C - Incorrect:** The option states "Make Governors directly elected." The tested rule is: The NCRWC emphasised structured consultation under Article 263 and an Inter-State Trade and Commerce Commission under Article 307. [Option C, MCQ 24]
- **D - Correct:** This is the precise rule: The NCRWC emphasised structured consultation under Article 263 and an Inter-State Trade and Commerce Commission under Article 307. [Option D, MCQ 24]

Examiner trap 24: Cooperative federalism requires institutions and practice, not uniform central control.

MCQ 25

What did NCRWC recommend regarding Governors?

A. Consult the Chief Minister before appointment and normally respect the five-year term. B. Allow removal without any institutional restraint. C. Give Governors a popular mandate superior to the Assembly. D. Transfer appointment to the Supreme Court.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The Commission retained presidential appointment but added Chief Minister consultation and a parallel restraint for removal or transfer. [Option A, MCQ 25]
- **B - Incorrect:** The option states "Allow removal without any institutional restraint." The tested rule is: The Commission retained presidential appointment but added Chief Minister consultation and a parallel restraint for removal or transfer. [Option B, MCQ 25]
- **C - Incorrect:** The option states "Give Governors a popular mandate superior to the Assembly." The tested rule is: The Commission retained presidential appointment but added Chief Minister consultation and a parallel restraint for removal or transfer. [Option C, MCQ 25]
- **D - Incorrect:** The option states "Transfer appointment to the Supreme Court." The tested rule is: The Commission retained presidential appointment but added Chief Minister consultation and a parallel restraint for removal or transfer. [Option D, MCQ 25]

Examiner trap 25: Consultation is not unilateral State appointment.

MCQ 26

Which Article 356 position is correct?

A. It should be the normal response to political disagreement. B. Retain it as a last resort, test majority on the floor and avoid premature Assembly dissolution. C. Governors may decide majority support privately. D. Parliamentary approval is unnecessary.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "It should be the normal response to political disagreement." The tested rule is: The report's restraint-based approach aligns analytically with floor-test constitutionalism, while S.R. Bommai remains an independent judicial authority. [Option A, MCQ 26]
- **B - Correct:** This is the precise rule: The report's restraint-based approach aligns analytically with floor-test constitutionalism, while S.R. Bommai remains an independent judicial authority. [Option B, MCQ 26]
- **C - Incorrect:** The option states "Governors may decide majority support privately." The tested rule is: The report's restraint-based approach aligns analytically with floor-test constitutionalism, while S.R. Bommai remains an

independent judicial authority. [Option C, MCQ 26]

- **D - Incorrect:** The option states "Parliamentary approval is unnecessary." The tested rule is: The report's restraint-based approach aligns analytically with floor-test constitutionalism, while S.R. Bommai remains an independent judicial authority. [Option D, MCQ 26]

Examiner trap 26: A later case can support the legal rule without proving implementation of the report.

MCQ 27

Which statement about reserved State Bills is accurate?

- A. The Constitution presently fixes NCRWC's periods verbatim. B. The President must decide every Bill in seven days.
C. NCRWC suggested about six months for the Governor and three for the President, but these were recommendations. D. Article 200 authorises indefinite inaction.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "The Constitution presently fixes NCRWC's periods verbatim." The tested rule is: The suggested periods structured discretion but did not by themselves amend Articles 200-201. [Option A, MCQ 27]
- **B - Incorrect:** The option states "The President must decide every Bill in seven days." The tested rule is: The suggested periods structured discretion but did not by themselves amend Articles 200-201. [Option B, MCQ 27]
- **C - Correct:** This is the precise rule: The suggested periods structured discretion but did not by themselves amend Articles 200-201. [Option C, MCQ 27]
- **D - Incorrect:** The option states "Article 200 authorises indefinite inaction." The tested rule is: The suggested periods structured discretion but did not by themselves amend Articles 200-201. [Option D, MCQ 27]

Examiner trap 27: Never present proposed timelines as current constitutional text.

MCQ 28

What was the decentralisation thrust?

- A. Return all local functions to Union ministries. B. Abolish State Election Commissions. C. Treat Parts IX and IXA as self-executing without State action. D. Clarify functions, fiscal domains, staff control, elections, audit and dissolution safeguards.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Return all local functions to Union ministries." The tested rule is: The report sought operational self-government through functions, funds, functionaries, election integrity and financial accountability. [Option A, MCQ 28]
- **B - Incorrect:** The option states "Abolish State Election Commissions." The tested rule is: The report sought operational self-government through functions, funds, functionaries, election integrity and financial accountability. [Option B, MCQ 28]
- **C - Incorrect:** The option states "Treat Parts IX and IXA as self-executing without State action." The tested rule is: The report sought operational self-government through functions, funds, functionaries, election integrity and financial accountability. [Option C, MCQ 28]
- **D - Correct:** This is the precise rule: The report sought operational self-government through functions, funds, functionaries, election integrity and financial accountability. [Option D, MCQ 28]

Examiner trap 28: Constitutional recognition does not guarantee actual devolution.

MCQ 29

How should a later law resembling an NCRWC recommendation be classified?

A. Compare exact proposal, route, wording, legal effect and attribution before assigning status. B. Assume implementation from chronology. C. Treat similarity as proof of adoption. D. Call every later judgment an executive action.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: A disciplined audit distinguishes exact, modified, related/unproven, judicial, displaced and pending outcomes. [Option A, MCQ 29]
- **B - Incorrect:** The option states "Assume implementation from chronology." The tested rule is: A disciplined audit distinguishes exact, modified, related/unproven, judicial, displaced and pending outcomes. [Option B, MCQ 29]
- **C - Incorrect:** The option states "Treat similarity as proof of adoption." The tested rule is: A disciplined audit distinguishes exact, modified, related/unproven, judicial, displaced and pending outcomes. [Option C, MCQ 29]
- **D - Incorrect:** The option states "Call every later judgment an executive action." The tested rule is: A disciplined audit distinguishes exact, modified, related/unproven, judicial, displaced and pending outcomes. [Option D, MCQ 29]

Examiner trap 29: Chronology and thematic similarity cannot establish causation.

MCQ 30

What do the ordinance cases contribute to this topic?

A. They abolish Articles 123 and 213. B. D.C. Wadhwa and Krishna Kumar Singh show that exceptional ordinance power cannot become routine legislative bypass. C. They prove every ordinance invalid. D. They implement an NCRWC amendment.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "They abolish Articles 123 and 213." The tested rule is: The cases are evidence about constitutional working and repeated repromulgation; they are not NCRWC implementation evidence. [Option A, MCQ 30]
- **B - Correct:** This is the precise rule: The cases are evidence about constitutional working and repeated repromulgation; they are not NCRWC implementation evidence. [Option B, MCQ 30]
- **C - Incorrect:** The option states "They prove every ordinance invalid." The tested rule is: The cases are evidence about constitutional working and repeated repromulgation; they are not NCRWC implementation evidence. [Option C, MCQ 30]
- **D - Incorrect:** The option states "They implement an NCRWC amendment." The tested rule is: The cases are evidence about constitutional working and repeated repromulgation; they are not NCRWC implementation evidence. [Option D, MCQ 30]

Examiner trap 30: Use cases for their precise holding, not as general political criticism.

MCQ 31

Which reform route is correctly matched?

A. Every governance failure to Article 368. B. Every constitutional issue to executive instructions. C. Rules/conventions for procedural practice, administration for capacity, law for statutory gaps and Article 368 for textual allocation. D. Judicial interpretation for drafting an entire policy code.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Every governance failure to Article 368." The tested rule is: The least-legally-sufficient-route principle matches the remedy to the proven source of failure. [Option A, MCQ 31]

- **B - Incorrect:** The option states "Every constitutional issue to executive instructions." The tested rule is: The least-legally-sufficient-route principle matches the remedy to the proven source of failure. [Option B, MCQ 31]
- **C - Correct:** This is the precise rule: The least-legally-sufficient-route principle matches the remedy to the proven source of failure. [Option C, MCQ 31]
- **D - Incorrect:** The option states "Judicial interpretation for drafting an entire policy code." The tested rule is: The least-legally-sufficient-route principle matches the remedy to the proven source of failure. [Option D, MCQ 31]

Examiner trap 31: Constitutional amendment is neither the first nor the only reform tool.

MCQ 32

Which is the best overall assessment of NCRWC?

A. Its report is binding because experts authored it. B. All recommendations remain unimplemented. C. Basic structure blocks every proposed reform. D. It is a selective diagnostic reform menu whose proposals need democratic choice, competent legal route and current-status proof.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Its report is binding because experts authored it." The tested rule is: The Commission remains analytically valuable, but mandate, consultation, legitimacy, feasibility and implementation must be judged proposal by proposal. [Option A, MCQ 32]
- **B - Incorrect:** The option states "All recommendations remain unimplemented." The tested rule is: The Commission remains analytically valuable, but mandate, consultation, legitimacy, feasibility and implementation must be judged proposal by proposal. [Option B, MCQ 32]
- **C - Incorrect:** The option states "Basic structure blocks every proposed reform." The tested rule is: The Commission remains analytically valuable, but mandate, consultation, legitimacy, feasibility and implementation must be judged proposal by proposal. [Option C, MCQ 32]
- **D - Correct:** This is the precise rule: The Commission remains analytically valuable, but mandate, consultation, legitimacy, feasibility and implementation must be judged proposal by proposal. [Option D, MCQ 32]

Examiner trap 32: Reject both wholesale dismissal and wholesale constitutionalisation.

PYQS AND ANSWER PRACTICE

VERIFIED SUPPORTING MAINS PYQS

PYQ boundary: No direct NCRWC-specific GS-II Mains question was located in the verified ledgers. The four questions below are reproduced as supporting/cross-owned routes; NCRWC evidence is used only where it answers the exact demand.

PYQ 1 - 2021 GS-II Q1 - supporting/cross-owned

Question: "Constitutional Morality" is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of "Constitutional Morality" with the help of relevant judicial decisions.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Constitutional morality is fidelity to the Constitution's text, structure, values and the restraints of public office, rather than compliance with transient social or political morality. It requires equal citizenship, reasoned power and respect for institutional roles. In *Government of NCT of Delhi v. Union of India* (2018), the Supreme Court linked it to constitutional trust, collaborative federalism and responsible government. *Navtej Singh Johar v. Union of India* (2018) held that constitutional morality must protect liberty and equality against exclusionary social morality. *Indian Young Lawyers Association* (2018) used equality and dignity to test religious exclusion, while later opinions demonstrate that the concept requires disciplined legal reasoning rather than personal preference. The NCRWC's focus on accountability, restraint and effective rights illustrates the same performance question: does institutional conduct realise constitutional commitments? Constitutional morality therefore makes a written Constitution a lived discipline of limited, answerable government.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 150 words.

PYQ 2 - 2019 GS-II Q12 - supporting/cross-owned

Question: "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Article 368 gives Parliament a wide constituent power, but not authority to destroy the Constitution's identity. *Kesavananda Bharati* (1973) held that every provision may be amended while the basic structure cannot be damaged or destroyed. The limitation is substantive: democracy, rule of law, judicial review, federalism, separation of powers and other foundational features cannot be abrogated through the amendment procedure. *Indira Nehru Gandhi v. Raj Narain* applied the doctrine to invalidate an amendment damaging free elections and judicial review. *Minerva Mills* (1980) struck clauses that sought unlimited amending power and excluded review, reasoning that limited amending power and judicial review are themselves basic features. Parliament therefore cannot use Article 368 to convert a limited power into an absolute one; a self-validating amendment would erase the distinction between a constituted amending body and original constituent power. This boundary also controlled NCRWC's express mandate: review could recommend reform within parliamentary democracy but could not authorise rewriting basic structure. Adaptability survives, but constitutional continuity sets its outer limit.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 250 words.

PYQ 3 - 2024 GS-II Q1 - supporting/cross-owned

Question: Examine the need for electoral reforms as suggested by various committees with particular reference to 'one nation-one election' principle. (*Spellings as printed.*)

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Electoral reform is needed to reduce opaque finance, criminalisation, weak internal democracy, defection incentives and repeated disruption by election cycles. The NCRWC recommended transparent party accounts, internal-democracy law, stricter consequences for defection and a broader Election Commission appointment process. Simultaneous elections may reduce recurring Model Code interruptions and campaign expenditure and could create predictable governance windows. However, they also raise federal and accountability risks: premature dissolution, constructive-confidence design, synchronisation, caretaker conventions and constitutional amendments need broad agreement. Regional issues may be crowded out by national campaigns, and expenditure savings are not enough to justify weakened legislative responsibility. Reform should therefore begin with political-finance transparency, ECI independence, clean candidates and party democracy. Any simultaneous-election design must preserve confidence of the House, federal choice, feasible transition and independent election administration rather than pursue calendar uniformity as an end in itself.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 150 words.

PYQ 4 - 2025 GS-II Q11 - supporting/cross-owned

Question: "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike...." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Constitutional morality means fidelity to constitutional values, procedures and institutional limits. For judges, it protects decisional independence from executive, legislative and popular retaliation: security of tenure, protected conditions of service, judicial review and institutional control support this function. *Kesavananda Bharati* (1973) and *Supreme Court Advocates-on-Record Association v Union of India* (2015) locate judicial independence within basic structure. Yet independence is not insulation from standards. The same morality demands transparent selection criteria, reasoned judgments, consistent recusal, ethical disclosure, fair complaint procedures and timely discipline. *Government of NCT of Delhi* and *Navtej Singh Johar v. Union of India* (2018) show that public power must be exercised through role fidelity, equality and reason-giving.

Removal under Articles 124(4)-(5) is an exceptional parliamentary safeguard, while the Restatement of Values and in-house procedure operate below that threshold. Their non-statutory and opaque features leave an accountability gap. Reform should preserve judicial primacy against executive capture while adding a permanent appointments secretariat, published criteria, recorded reasons, diversity data and an independent, fair complaints process. Constitutional morality thus requires independence in adjudication and accountability in the constitution and exercise of judicial office; neither executive control nor corporate judicial secrecy satisfies it.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 250 words.

ORIGINAL SOLVED MAINS PRACTICE

ORIGINAL MAINS PRACTICE 1 - 10 MARKS, 150 WORDS

Question: Explain the mandate, composition and legal status of the NCRWC.

Demand decoding: Explain requires verified identity, the mandate boundary and the legal consequence of advisory status.

The Union Government constituted the National Commission to Review the Working of the Constitution by resolution dated 22 February 2000. Justice M.N. Venkatachaliah, a former Chief Justice of India, chaired the eleven-member body; the report records that P.A. Sangma later resigned. It was adopted on 11 March and presented to the Prime Minister on 31 March 2002.

Its mandate was to review fifty years of constitutional working and recommend changes for efficient governance and socio-economic development. The terms expressly preserved parliamentary democracy and the Constitution's basic structure or features. Thus the NCRWC was a temporary executive and advisory commission, not a constitutional or statutory body, constituent assembly, court or Article 368 authority. Its recommendations could become operative only through the competent amendment, legislative, executive, judicial or institutional route. Expertise and consultation gave the report persuasive value, not binding force.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 141]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 2 - 10 MARKS, 150 WORDS

Question: Distinguish constitutional review, amendment and replacement, with reference to the NCRWC.

Demand decoding: Distinguish requires separate sources of authority, legal effects and limits.

Constitutional review diagnoses how text and institutions operate and proposes repair; its report does not itself alter law. The NCRWC performed this advisory function under an executive resolution and within parliamentary democracy and basic structure.

Constitutional amendment is different. Parliament acts under Article 368 through prescribed special majorities; amendments affecting specified federal provisions also require ratification by at least half the States. Even a procedurally valid amendment remains subject to the basic-structure doctrine developed in *Kesavananda Bharati* and *Minerva Mills*.

Replacement claims authority to establish a new constitutional order and therefore requires a fresh constituent mandate. NCRWC neither possessed nor asserted that power. Its exercise is best understood as constitutional maintenance: identify failure, select the least legally sufficient route and preserve constitutional identity. Basic structure therefore limits destructive amendment but does not freeze all reform.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 135]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 3 - 15 MARKS, 250 WORDS

Question: Assess the principal NCRWC recommendations across representative, executive, judicial and federal institutions.

Demand decoding: Assess requires organised coverage plus evaluation of design and present legal status.

The NCRWC linked democratic legitimacy to the performance of institutions rather than proposing a new Constitution.

For elections and parties, it recommended measures against criminalisation, audited political finance, a comprehensive party law, a plural Election Commission appointment body, and stricter anti-defection consequences including resignation, recontest and Election Commission adjudication. For Parliament and State legislatures, it proposed minimum sitting days, stronger committee scrutiny, defined privileges and constructive no-confidence with an alternative leader.

For the executive and administration, it proposed a ten per cent ministry ceiling, statutory Civil Services Boards, wider senior recruitment, information access, whistle-blower protection and stronger integrity institutions. Judicial proposals included a distinct National Judicial Commission, a complaints mechanism, higher retirement ages, access to speedy justice and better court administration.

Federal recommendations stressed Inter-State Council consultation, Chief Minister consultation in Governor appointments, Article 356 restraint, an Article 307 trade-and-commerce body and suggested periods for reserved Bills. Local-government proposals sought clearer functions, fiscal domains, staff control, elections and audit.

The architecture is valuable because it joins authority, accountability and delivery. Yet every item remained advisory. Later reforms may be exact, modified, merely similar, judicially developed, displaced or pending. The Commission should therefore be used as a classified reform menu, not as a statement of current law.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 206]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 4 - 15 MARKS, 250 WORDS

Question: Analyse why the working of the Constitution cannot be judged from constitutional text alone.

Demand decoding: Analyse requires a causal framework connecting formal rules to institutional behaviour and outcomes.

Constitutional text allocates power and protects rights, but institutions, conventions, incentives, political culture and administrative capacity determine whether those commitments become lived outcomes.

Legislative working depends on sitting time, committee scrutiny, financial control, opposition space and restraint in ordinance use. Electoral working requires control of criminalisation, transparent campaign finance, internal party democracy and credible anti-defection adjudication. Executive working turns on cabinet responsibility, reasoned discretion, professional civil services, transparency and anti-corruption enforcement.

Federal working requires consultation, predictable fiscal relations, restrained use of Governors and Article 356, and functioning intergovernmental forums. Local self-government needs actual transfer of functions, funds and functionaries. Judicial working concerns timely appointments, independence, accountability, access and compliance; tribunal efficiency cannot displace High Court judicial review recognised in L. Chandra Kumar.

Cases such as S.R. Bommai, D.C. Wadhwa and Krishna Kumar Singh demonstrate that formally available powers can be constitutionally corrosive when conventions and limits are ignored. Conversely, vacancies or poor implementation may reflect capacity rather than defective text. A sound diagnosis therefore asks whether failure lies in authority, restraint, delivery or correction, and then selects a proportionate reform route.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 183]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 5 - 20 MARKS, 250 WORDS

Question: Critically evaluate the NCRWC as a constitutional reform exercise and audit the implementation of its recommendations.

Demand decoding: Critically evaluate requires achievements, limits, differentiated implementation evidence and a graded verdict.

The NCRWC was a major exercise in constitutional maintenance. Constituted on 22 February 2000 and reporting on 31 March 2002, it reviewed fifty years of institutional experience while expressly preserving parliamentary democracy and basic structure. Consultation papers, expert studies and public responses produced 249 recommendations across rights, elections, legislatures, administration, courts, federalism and decentralisation.

Its strength was diagnostic breadth and route sensitivity: 58 proposals were classified for constitutional amendment, 86 for legislation and 105 for executive action. It connected democratic integrity with party finance, legislative scrutiny, civil-service professionalism, judicial access and federal consultation.

Its limits are equally important. An executive-appointed commission lacked constituent authority; consultation was not popular ratification. Its basic-structure assurance did not judicially pre-clear any later amendment. Recommendations varied in feasibility and political support, while implementation responsibility was dispersed among Parliament, States, executives, courts and institutions.

Implementation must therefore be audited individually. The 91st Amendment's fifteen per cent ministry ceiling is related but not the proposed ten per cent. The Disaster Management Act, 2005 did not transfer disaster management to the Concurrent List. The later NJAC differed from NCRWC's commission and was invalidated in 2015. RTI and Lokpal statutes occupy related fields but require independent attribution.

The NCRWC succeeded more as a structured diagnosis and reform menu than as a single implemented programme. Selective adoption, modification or rejection is constitutionally legitimate when supported by evidence, deliberation and the competent legal route.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 233]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 6 - 20 MARKS, 250 WORDS

Question: Design a route-sensitive constitutional reform framework for recurring failures in Indian governance.

Demand decoding: Design requires a decision framework, sectoral applications, constitutional limits and implementation controls.

Reform should begin with diagnosis, not an automatic demand for constitutional amendment. First identify whether the failure concerns legal authority, institutional restraint, capacity, incentives or corrective remedies.

Where the defect is procedural, House rules and conventions can improve Bill scrutiny, opposition time, reason-giving and restraint in ordinance use. Capacity failures such as vacancies, weak court infrastructure, poor records or unstable civil-service tenure require finance, staffing, technology and administrative redesign. Statutory gaps call for ordinary legislation: political-finance disclosure, party regulation, tribunal structure, whistle-blower protection and integrity institutions are examples.

Article 368 should be used only when constitutional text or allocation must change. Amendments affecting provisions specified in the proviso to Article 368(2) additionally require ratification by at least half the States. Judicial interpretation applies open-textured provisions and protects rights, federalism, judicial review and basic structure, but courts cannot replace a complete legislative policy. Federal disputes also require consultation through institutions such as the Inter-State Council, while local devolution depends heavily on State law and administration.

Every proposal should identify the competent actor, finance, timetable, transparency mechanism, review forum and outcome metric. It must then be tested against rights, democratic legitimacy, federal balance, basic structure and implementation capacity.

The NCRWC illustrates this plural route logic. Constitutional durability comes from matching remedy to defect: under-constitutionalisation evades law, but over-constitutionalisation creates rigidity and mistakes poor working for defective text.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 226]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Firewall: The Core already supplies an answer-complete account. This block adds analytical precision; it does not turn every governance defect into a constitutional-amendment question.

Institutional-performance framework

Capacity	Question	Evidence route
Authorisation	Is the actor legally empowered?	Constitution, statute, rule
Restraint	Are rights, federalism and role limits respected?	reasons, conventions, review
Delivery	Can authority become timely outcomes?	staffing, procedure, finance, data
Correction	Can failure be exposed and remedied?	legislatures, audit, courts, elections

Reform sequencing and implementation causation

A commission recommendation should be coded as: **exact adoption; modified adoption; functionally similar later reform without proven attribution; judicial development in a related field; rejected or constitutionally displaced proposal; or pending proposal**. Chronology alone cannot prove causation. Compare wording, institution, route, legal effect and official explanatory material.

Constitutional maintenance versus replacement

Maintenance preserves the founding settlement while repairing procedure, accountability and capacity. Replacement claims a new constituent mandate. The NCRWC's express parliamentary-democracy and basic-structure limits place it in the maintenance category. This does not imply that basic structure blocks all change: it limits destructive amendment while leaving multiple lawful reform routes open.

Comparative evaluation

Commission-based review can aggregate expertise and consultation, but elected institutions must decide contested designs. Courts test enacted measures against the Constitution; they do not pre-approve an entire report. Each proposal should therefore be tested for democratic legitimacy, federal impact, rights cost, administrative feasibility, institutional incentives and reviewability.

CONSOLIDATED REGISTER NOTES

Identity and constitutional boundary

- **22 February 2000:** Government of India resolution constituted the NCRWC.
- **Chair:** Justice M.N. Venkatachaliah, former Chief Justice of India.
- **Composition:** eleven members including the Chair; P.A. Sangma later resigned.
- **11 March 2002:** report adopted/signed; **31 March 2002:** presented to the Prime Minister.
- Temporary executive advisory commission; neither constitutional nor statutory.
- Review of fifty years' working within parliamentary democracy and basic structure.
- Review ≠ amendment; amendment ≠ replacement; recommendation ≠ law.

Recommendation memory grid

Cluster	High-yield anchors
Electoral	criminalisation, campaign-finance audit, party law, ECI appointment, anti-defection
Legislatures	LS 120; RS 100; State Houses 90/50; committees; privileges; constructive no-confidence
Executive/services	10% ministry ceiling; Civil Services Boards; wider senior recruitment; Article 311 review
Judiciary/tribunals	distinct judicial commission; complaints; HC 65/SC 68; access, ADR and tribunal independence
Federalism	Inter-State Council; Governor consultation; Article 356 restraint; Article 307 body; Bill timelines
Local government	functions, fiscal domain, functionaries, elections, audit and dissolution safeguards
Rights/governance	torture, compensation, privacy, speedy justice, Article 300A, RTI, whistle-blowing, Lokpal

Working-of-Constitution dashboard

TEXT + INSTITUTIONS + CONVENTIONS + POLITICAL CULTURE + CAPACITY + REMEDIES

|
v

anti-defection | criminalisation | campaign finance | scrutiny | ordinances
 Governor/Art 356 | local devolution | judicial vacancies/accountability
 tribunals | civil service | commissions | transparency/corruption | federal trust

Implementation and route tests

recommendation -> later instrument -> wording -> legal effect -> attribution -> status
 status = exact | modified | related/unproven | judicial | displaced | pending

problem -> convention/rule | administration | ordinary law | Article 368
 -> Article 368 + State ratification where proviso applies | interpretation

Final examiner traps

- NCRWC did not propose or enact a replacement Constitution or presidential system.
- Its report is not binding and not every recommendation is unimplemented.
- Later similarity does not establish NCRWC causation.
- NCRWC judicial commission ≠ NJAC ≠ current collegium.
- 10% proposal ≠ 15% ceiling enacted by the 91st Amendment.
- Basic structure limits destructive amendment; it does not prohibit all reform.
- Every governance failure does not require constitutional amendment.
- Sarkaria, Punchhi, ARC and Law Commission recommendations retain separate ownership.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Review, amendment and replacement

START: WHAT KIND OF CONSTITUTIONAL CHANGE IS BEING DISCUSSED?

|
+-- REVIEW -> diagnose working -> recommend -> no legal change by report alone
+-- ARTICLE 368 AMENDMENT -> Parliament acts -> procedure + basic-structure review
+-- PROVISIO TO ARTICLE 368(2) -> specified federal change -> at least half States ratify
+-- REPLACEMENT -> fresh constituent claim -> outside NCRWC mandate
|
v

NCRWC = CONSTITUTIONAL MAINTENANCE, NOT A NEW CONSTITUTION.

Basic structure limits destruction; it does not block all reform.

ASCII MASTER FLOW - PANEL 2/12: NCRWC identity and verified chronology

22 FEBRUARY 2000 -> Government of India executive resolution

|
v

TEMPORARY + ADVISORY + NON-STATUTORY + NON-CONSTITUTIONAL

|
v

CHAIR -> Justice M.N. Venkatachaliah, former CJI

COMPOSITION -> 11 members including Chair; P.A. Sangma later resigned

SECRETARY -> Dr Raghbir Singh, not a Commission member

|
v

11 MARCH 2002 -> report adopted/signed

31 MARCH 2002 -> report presented to Prime Minister

ASCII MASTER FLOW - PANEL 3/12: Mandate, consultation and authority

FIFTY YEARS' EXPERIENCE

|
v

efficient + smooth + effective government + socio-economic development

|
v

WITHIN PARLIAMENTARY DEMOCRACY

WITHOUT DISTURBING BASIC STRUCTURE / BASIC FEATURES

|
v

consultation papers + expert studies + public responses + deliberation

|
v

PERSUASIVE EVIDENCE, NOT BINDING LAW OR CONSTITUENT POWER

ASCII MASTER FLOW - PANEL 4/12: Institutional-identity firewall

CONSTITUENT ASSEMBLY -> founding Constitution, 1946-49

PARLIAMENT UNDER ARTICLE 368 -> formal amendment power

SARKARIA / PUNCHHI -> bounded Centre-State review

ADMINISTRATIVE REFORMS COMMISSIONS -> public-administration reform

LAW COMMISSION -> defined law-reform questions

NCRWC -> comprehensive review of constitutional working

RULE: overlap of subject != merger of mandate, recommendation or authority.

ASCII MASTER FLOW - PANEL 5/12: Working of the Constitution

TEXT -> institutions -> rules/statutes -> conventions -> political culture
-> administrative capacity -> remedies -> lived outcomes

TEST SIX SYSTEMS

legislature | executive | judiciary | federalism | local government | rights

ASK FOUR CAPACITIES

authorisation | restraint | delivery | correction

FAILURE OF WORKING != AUTOMATIC FAILURE OF TEXT.

ASCII MASTER FLOW - PANEL 6/12: Electoral and legislative reform cluster

ELECTORAL INTEGRITY

criminalisation -> speedy adjudication + disqualification rules
campaign finance -> audited accounts + donor/donee accountability
party democracy -> comprehensive party law
ECI appointment -> PM + LoP LS + LoP RS + Speaker LS + Deputy Chair RS

LEGISLATURE

LS 120 days | RS 100 | State Houses 90 / under-70 Houses 50
committee scrutiny + public consultation + defined privileges
constructive no-confidence -> 20% notice + alternative leader
anti-defection -> ECI decision + resign/recontest + office bar + invalid destabilising vote

ASCII MASTER FLOW - PANEL 7/12: Executive, services, integrity and institutions

COUNCIL OF MINISTERS -> proposed 10% ceiling
CIVIL SERVICES -> statutory boards for transfer/promotion/placement
SENIOR POSTS -> wider recruitment including open market
ARTICLE 311 -> protect honest officials, improve accountability process
TRANSPARENCY -> information access; move from secrecy to openness
INTEGRITY -> whistle-blower protection + confiscation/benami tools
INSTITUTIONS -> Lokpal/Lokayuktas + CVC + PAC/CAG follow-up

CAUTION: later statutes/rules require separate attribution and status proof.

ASCII MASTER FLOW - PANEL 8/12: Judiciary, tribunals and rights

NATIONAL JUDICIAL COMMISSION (NCRWC DESIGN)

CJI + two senior-most SC judges + Union Law Minister + one eminent person
|
+-- appointments
+-- complaints/accountability mechanism
+-- HC retirement 65 | SC retirement 68

JUSTICE DELIVERY

access + speedy justice + ADR/plea bargaining + court planning
tribunal design -> expertise + independence + High Court review

RIGHTS / DPSP / DUTIES

torture, compensation, privacy, access/speedy justice, environment
stronger Article 300A protection; implementation review; proposed new duties

ASCII MASTER FLOW - PANEL 9/12: Federalism and decentralisation

COOPERATIVE FEDERALISM

Inter-State Council consultation + Article 307 trade/commerce body
Governor appointment after Chief Minister consultation
Article 356 -> last resort + floor test + no premature dissolution
reserved Bills -> suggested Governor ~6 months; President ~3 months

LOCAL SELF-GOVERNMENT

clear functions + separate fiscal domain + staff control
timely elections + audit + dissolution safeguards
functions + funds + functionaries -> actual devolution

CAUTION: proposals are not current Articles 200-201 deadlines.

ASCII MASTER FLOW - PANEL 10/12: Implementation audit

EXACT PROPOSAL

- > identify later instrument
- > compare wording and competent route
- > test legal effect
- > seek official attribution
- > label:
 - exact | modified | related/unproven | judicial | displaced | pending

10% ministry ceiling -> 91st Amendment uses 15% -> modified/related
NCRWC judicial commission -> later NJAC invalidated in 2015 -> not current law
disaster to Concurrent List -> 2005 Act without List transfer -> related, not adoption
RTI/Lokpal reforms -> later statutes with independent legal origins and designs

ASCII MASTER FLOW - PANEL 11/12: Diagnosis-to-route matrix

CONVENTION / PROCEDURE DEFECT -> House rules + norms + reason-giving
CAPACITY DEFECT -> staffing + finance + technology + administration
STATUTORY GAP -> ordinary legislation
CONSTITUTIONAL ALLOCATION GAP -> Article 368 amendment
SPECIFIED FEDERAL CHANGE -> Article 368 + at least half States
OPEN-TEXTURED RULE -> judicial interpretation

CURRENT WORKING TESTS

anti-defection | criminalisation | campaign finance | scrutiny | ordinances
Governor/Art 356 | local devolution | judicial vacancies/accountability
tribunals | civil service | commissions | transparency/corruption | federal trust

USE THE LEAST LEGALLY SUFFICIENT ROUTE.

ASCII MASTER FLOW - PANEL 12/12: Criticism, PYQ spine and verdict

LIMITS

mandate self-limited | consultation not constituent consent
basic-structure assurance not judicial pre-clearance
fragmented implementation | uneven feasibility | selective value

PYQ / MAINS SPINE

identity -> mandate -> working beyond text -> recommendation clusters
-> implementation status -> route choice -> legitimacy/feasibility -> verdict

PRELIMS FIREWALL

22-02-2000 | Venkatachaliah | 11 members | 31-03-2002
executive/advisory | not constitutional/statutory | not binding

QUALIFIED VERDICT

NCRWC remains a useful diagnostic reform menu. Adopt, modify or reject each
proposal only through the competent constitutional route and current-law evidence.
CURRENT CONTROL: 9 SEPTEMBER 2026.